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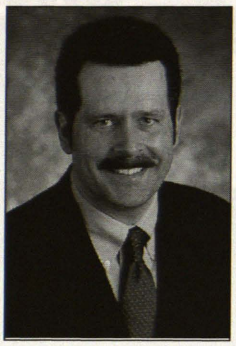

INCUMBENT IMPERIALISM

Reforming America's Gerrymandering Crisis

by Patrick Basham

As soon as congressional districts were introduced, the controversy about how to design them began. Redistricting has evolved into the electoral instrument that perhaps best creates political winners and losers and, in the process of doing so, literally reshapes American democracy. Hence, the party or politician who controls redistricting has an enormous electoral advantage. In general, redistricting plans tend to focus on incumbency protection and partisan gain. When one party controls the redistricting process, that party endeavors to draw district lines in ways that favor its candidates. That form of redistricting is known as gerrymandering, that is, the redrawing of electoral districts to favor one political party over another.

Partisan gerrymanders are very effective in increasing a party's share of legislative seats. The creation of so-called safe districts allows the two major parties to work together to minimize their respective election risks. The minority party usually prefers a level of certainty regarding its base number of legislative seats. To the extent that political parties cooperate and compromise with each other, the redistricting process has degenerated into a conspiracy against competitive elections, undermining the fundamental notion of representation. This anti-competitive trend led economist Randall Holcombe to conclude that, "political markets are divided in the same way that cartels would divide markets in order to make each member a monopolist in his own territory to help enforce the cartel agreement."

In many states, gerrymandering may be a more serious problem today than it has ever been in American history. Representative democracy is a system of government whereby citizens control the government through their chosen representatives. In the United States, however, political representatives increasingly choose those they will represent, as election results tend to be predetermined by gerrymandering. As Rep. Tom Davis (R-VA) puts it: "It used to be the voters chose the politicians. Now the politicians choose the voters."

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Therefore, redistricting has important consequences for the health of the American political system. Under a system of gerrymandered districts, the health of American democracy is at risk. Gerrymandering diminishes voter sovereignty over elections. Partisan legislative gerrymandering severely undermines electoral competitiveness, arguably to the point of violating the Constitution's Equal Protection Clause, as it consigns electoral majorities to minority status on the basis of their political views. Scholarship at the state level finds that partisan redistricting plans actually harm the quality of representation in state legislatures.

Thanks to increasingly sophisticated gerrymandering, the redistricting process makes it harder for newcomers to run for office because it strengthens the advantages incumbents already enjoy. The redistricting that occurred in 2001 and 2002 will predetermine most election outcomes for the rest of this decade. Following the 2000 census, the two major parties carved up the national political map into a few hundred political fiefdoms with the help of computer programs that allow parties to design, with pinpoint accuracy, advantageous districts.

Consequently, many more congressional races became noncompetitive affairs. Today, the electoral battleground is smaller than ever, as only 30 to 40 seats are truly competitive, compared with more than 120 seats a decade earlier. Of the few dozen competitive seats, less than a dozen are toss-up contests that either party can just as easily win, down from a few dozen in the early 1990s.

Observing the state of California, for example, one is struck by the fact that the nation's largest delegation to the House – 53 seats – had only one competitive race (in the 18th District) in 2002. That contest occurred only because of Democratic state representative Dennis

***Pointless?**: Gerrymandering largely predetermines the outcome of an election in a specific district, and has led to a decrease in competitive districts nationwide where a single vote actually has considerable influence. (Michael Ngan/AFP/Getty Images)*

Cardoza's primary defeat of disgraced seven-term Rep. Gary Condit, scandal-tarred by the investigation of the disappearance and murder of Chandra Levy, Condit's former intern. Today, the average House incumbent faces a more competitive party primary than general election contest. Across the country, according to Rob Richie, executive director of the Center for Voting and Democracy, in practice "the only way you can lose a seat that's safe is by losing a primary."

Because of gerrymandering, almost 90 percent of Americans live in congressional districts where the outcome is so certain that their votes are irrelevant. Gerrymandering contributes to the removal of a potentially meaningful vote from tens of millions of Americans. As long as gerrymandering is permitted, control over redistricting will have more influence on election outcomes than any other factor, including voter preferences.

Gerrymandering has helped the members of the U.S. House become a political aristocracy. However, the problem of politicians using redistricting to create safe seats is not limited to the US House. At the state level, the problem is equally disconcerting. Although safe seats typically feature a token partisan opponent, some seats are so safe that it is futile for anyone to bother. Of the roughly 6,000 state legislative seats filled every two years nationwide, about 40 percent feature a race in which only one party fields a candidate. Given that partisan change is unlikely within a district, changes in the ideological intensity of the parties themselves can have a significant impact on policy outcomes.

The most memorable recent display of gerrymandering occurred in 2001 in Texas, where the Republican-controlled state senate was at loggerheads with the Democratic-controlled state house over the post-census composition of a new district map. A federal panel temporarily resolved the standoff by producing a district map that looked suspiciously like the old, increasingly unrepresentative one. Under the panel's plan, the state's congressional delegation would remain almost 60 percent Democratic despite the party's increasingly tenuous hold on Texans' evolving partisan loyalties.

The Republicans, however, won the state house in the 2002 elections. In a vivid demonstration that, in Texas at least, politics remains a contact sport, the new Republican state legislative leadership, aggressively encouraged by leading Texans in Congress, introduced a new district map that would shift the state's future congressional delegation to almost 70 percent Republican. In response, in May 2003, 51 state house Democrats absconded across state lines

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"Because of gerrymandering, almost 90 percent of Americans live in congressional districts where the outcome is so certain that their votes are irrelevant."

to Oklahoma to deprive the Austin legislature of a quorum. Two months later, the stunt was repeated as 12 Democratic state senators moved to New Mexico. The Republicans eventually outlasted their imaginative and energetic opponents and, in mid-October 2003, the new district map passed the Texas legislature.

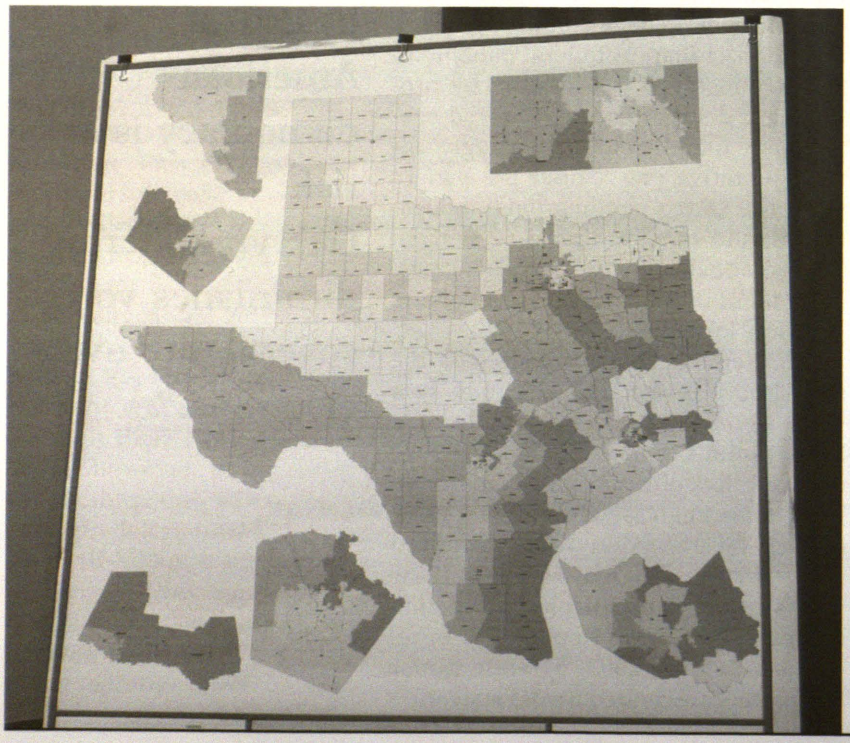
On January 6, 2004, a federal panel, divided along partisan lines, let stand the new Texas district map that shifts up to seven Democratic-held seats into Republican hands. The panel ruled that race, an unlawful reason for redrawing district lines, did not prompt the latest redistricting. Instead, the judges found that partisanship, the practice of drawing districts to favor one party over another, stimulated the redistricting. As partisan gerrymandering has yet to run afoul of the Supreme Court, the panel found no constitutional basis for judicial intervention.

Partisan control of redistricting presents a serious threat to the health of the American democratic system. Redistricting that is favorable to one group is equally injurious to others. Unfortunately, there are no easy solutions to the problem. Subjective criteria will always be the victim of manipulation. Unlike most democracies, most American states place redistricting authority in the hands of politicians rather than an independent commission, such as the United Kingdom's Boundaries Commission. To make elections somewhat more competitive, at least initially after redistricting, it may be necessary to use nonpartisan or bipartisan commissions or panels.

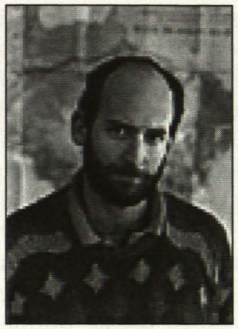
The preference for a diminution of partisan control has an intellectual lineage dating to the country's founding. Historian Max Farrand recounts that "James Madison...espoused the concerns of legislative control over popular sovereignty in his writings and speeches around the time of the Federal Constitutional Convention. Madison trusted the 'normal process of representation' in situations where representatives share a common interest with their constituents, not one in which they 'have a personal interest distinct from that of their constituents'." According to the Madison Proviso, "no democratic institution should have the final authority to determine the rules or settle the disputes about its own membership."

In determining the most viable path to reforming the redistricting process, it may be advantageous to make the most of federalism to encourage experimentation at the state level. A state-by-state approach to resolving the redistricting issue and curing gerrymandering-related abuses could involve the citizen initiative petition process in those states that employ this direct democracy instrument. For example, Gov. Arnold Schwarzenegger has placed a redistricting initiative on this fall's California ballot. It seeks popular approval for handing control of redistricting over to an independent panel of retired judges.

It is not a perfect solution. Nevertheless, removing politicians' control over redistricting and establishing less malleable, more objective redistricting criteria can help to lessen the problem. These types of changes merit serious consideration. Meanwhile, elected officials should be disconnected from redistricting. The stubborn reality is that there will not be a reduction in gerrymandering until the incumbent fox ends his tenure as guardian of the democratic henhouse. P



Don't Mess With Texas: *In Texas, Democrats and Republicans have scrimmaged repeatedly over redistricting. (Jana Birchum/Stringer/Getty Images)*



THE ENERGY POLICY ACT OF 2005

An Economist's Perspective

by Robert Mendelsohn

In the face of rising energy prices, the Energy Policy Act of 2005 was signed into law by President Bush on August 8, 2005. According to the President, the bill will "lead to a more secure and more prosperous nation that is less dependent on foreign sources of energy." According to the bill's sponsor, Senator Peter Domenici, "It's not a bill for today or necessarily tomorrow – it's for the future." The most controversial aspects of the original bill were dropped. The bill no longer advocates drilling in the Alaskan Wildlife Refuge, eliminating liability for the additive MBTE, tackling global warming, or increasing the fuel efficiency standards for automobiles. However, the Act still contains 1724 pages and a smorgasbord of titles targeted at a host of special interest groups. It will add to the federal deficit by slightly increasing direct government expenditures and by dramatically reducing federal revenue. The bill provides benefits for transmission grids, electric utilities, and oil, gas, coal, and nuclear interests. There are even some incentives for energy conservation and renewable energy. It is as if a group of energy industry representatives got together with the Vice President and provided a secret list of all the things they ever wanted.

One way to analyze the bill is to see who wins and loses. In this case, the targeted winners are the energy producing states, since they will get a boost in their domestic economies. The bill also has major provisions to subsidize the use of corn as a fuel (ethanol). From a state perspective, the bill will heavily benefit states that voted Republican in the last election. From an individual point of view, the bill will benefit households that spend a lot of their budget on energy, who happen to own energy stocks, or who grow corn.

Although tallying the winners and losers provides insight into the politics behind the bill, will the bill accomplish what its proponents say it will do? The bill is intended to reduce our dependence on foreign energy sources. However, most of the bill will reduce energy prices for consumers. This, of course, will encourage them to consume more energy. Because most of our domestic sources of energy are relatively expensive, this will put increased pressure on importing more energy from abroad. It is therefore extremely unlikely that the bill will have any effect on reducing the amount of energy that America imports from abroad. In fact, it may have just the opposite effect. For example, part of the bill is intended to make it easier to import natural gas. The federal government will assume complete control over siting liquid natural gas ports, making it easier to import natural gas from overseas.

The bill is intended to increase American prosperity. However, by subsidizing energy, the bill directly interferes with the market for energy. This bill completely violates one of the purported central beliefs of the Republican Party: the importance of keeping markets free. This Act interferes with free markets and encourages Americans to buy more energy than markets recommend. This will weaken the American economy as it widens the gap between supply and demand. What people have to pay for energy will be a lot less than what it costs to produce because of the Act's energy subsidies. These subsidies will cause more expensive fuels to be substituted for cheaper fuels. The American economy and American taxpayers will have to pay more for all of these inefficiencies. The Act will be a drag on the economy today, tomorrow, and far into the future.

The alleged goals of the Energy Policy Act of 2005 will not likely be achieved. Markets do not require subsidies to provide and distribute energy. Energy will still be imported from abroad. However, there are reasons of national interest why government should be involved

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***Guzzling Gold**: The 2005 Energy Policy Act essentially subsidizes energy, encouraging Americans to consume more. (Karen Bleier/AFP/Getty Images)*

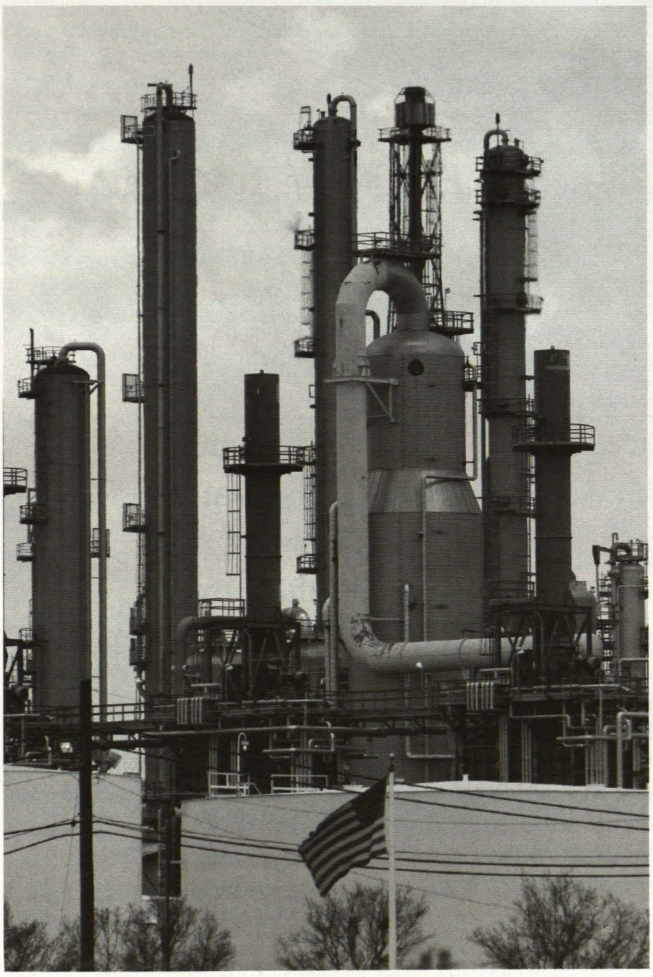
with our economy and specifically in energy. How well does the Act serve these national interests? For example, markets fail to control for externalities such as pollution. The bill could make sure that energy is produced in a safe and reliable fashion that protects the American environment. This particular Act, however, actually suspends a number of rules designed to protect the environment. Drilling, mining, and refineries are all given special protection from damage they may cause to the environment. Nuclear plants are given limited liability for damages they may cause. The bill makes no attempt to define an American policy on greenhouse gases despite the mounting evidence that these gases must be controlled. The Act shirks the national responsibility to protect the environment.

"From a state perspective, the bill will heavily benefit states that voted Republican in the last election."

Another role of national interest that an energy policy could serve is to protect consumers from natural monopolies. The cost of local distribution is very high for electricity and natural gas. It is expensive to build more than one network of wires or pipes to each home. Economics suggests there should be only a single utility providing each of these services in each local area. However, a single provider makes it possible for utilities to charge monopoly prices since they have no competition. An energy policy could make sure that natural monopolies are regulated to serve the public interest. The Energy Policy Act, however, repeals a number of provisions that have been in place since the 1930's to protect consumers from giant utilities. Utilities will be able to merge much like they have in the phone industry. What this may do to future energy prices is unclear but it certainly increases the chance of seeing Enron type mischief again.

Finally, a national energy policy must manage the energy reserves in public hands. This includes the vast reserves on the continental shelves, in Alaska, and on federal lands across the country. A wise use of these reserves would allocate them carefully across time to maximize their value for all Americans, those present and those in the future. This Act intends to open up high cost reserves in the deep continental shelf and in shale oil so they can be consumed today. (The original bill would also have opened up the Alaskan Wildlife Refuge). By consuming these resources too soon, the Act dramatically reduces the value of these reserves. By causing expensive reserves to be used prematurely, the Act causes the extraction costs to be spent today instead of far into the future. The costs of extraction are this much higher

***Goodbye Greenpeace**: To soften the price shock caused by increased energy demand, Congress has suspended a number of important environmental regulations (Getty Images)*



Running on Empty? *A lack of sufficient refining infrastructure has amplified the oil shock, but the Energy Policy Act fails to address this important issue. (Dave Einsel/Stringer/Getty Images)*

which means that the reserves are worth much less. Of course, using these resources today provides some immediate benefits to current consumers. But those resources were intended for future Americans to consume. When this energy is used up quickly at today's subsidized energy prices, these resources will not be there for future Americans to use. The Act will make future Americans far worse off and make them far more dependent on energy from abroad.

Of course, with the rising energy prices during the Bush administration, it may be natural to think that energy subsidies might be a good idea. In the aftermath of Hurricane Katrina, energy prices have spiked, and the idea may seem even more desirable. However, market prices are important signals for free markets to work, and interfering with market prices is equivalent to regulating markets. The current high prices after Katrina are encouraging energy industries to repair the damage quickly. Soon, the energy capacity of the country will be repaired and prices will come down. The problem with this Act is that it will exist long after this temporary need is gone. Although we are consuming fossil fuels at a rapid pace, there is no evidence that the world is running out of energy. Fossil fuel supplies alone are expected to last for hundreds of years. Even if one were concerned about limited supplies, the last response one should take is to lower prices and thus consume more.

Until the Bush administration took office, real energy prices had been consistently falling for fifty years. Why are things different the last few years? First, American prices have increased partially because our dollar has fallen in value. The cheapest energy in the world is abroad. It is in our interest to import it. If our dollar becomes weaker, we must pay more dollars per barrel of oil. Second, there is a shortage of refinery capacity. As energy demand has increased, there has been a growing need for more refineries. Unfortunately, many states and local governments have effectively practiced a 'not in my backyard' philosophy, preventing the siting of new facilities. Although to his credit, President Bush has advocated using former military land for new refineries, he has not actually made any progress building new refineries. The bill somehow left this important item out of the agenda.

In short, the Energy Act of 2005 gets a very poor grade. It will reduce our prosperity, do nothing about our dependence on foreign energy, increase pollution, increase monopoly power, and mismanage public resources. The next Congress should repeal the Act before too much damage is done and write a new energy act that actually serves the public interest. P

"The Act will make future Americans far worse off and make them far more dependent on energy from abroad."

JUDICIAL LIMITS

The Supreme Court's Responsibility of Self-Restraint

by Zheyao Li

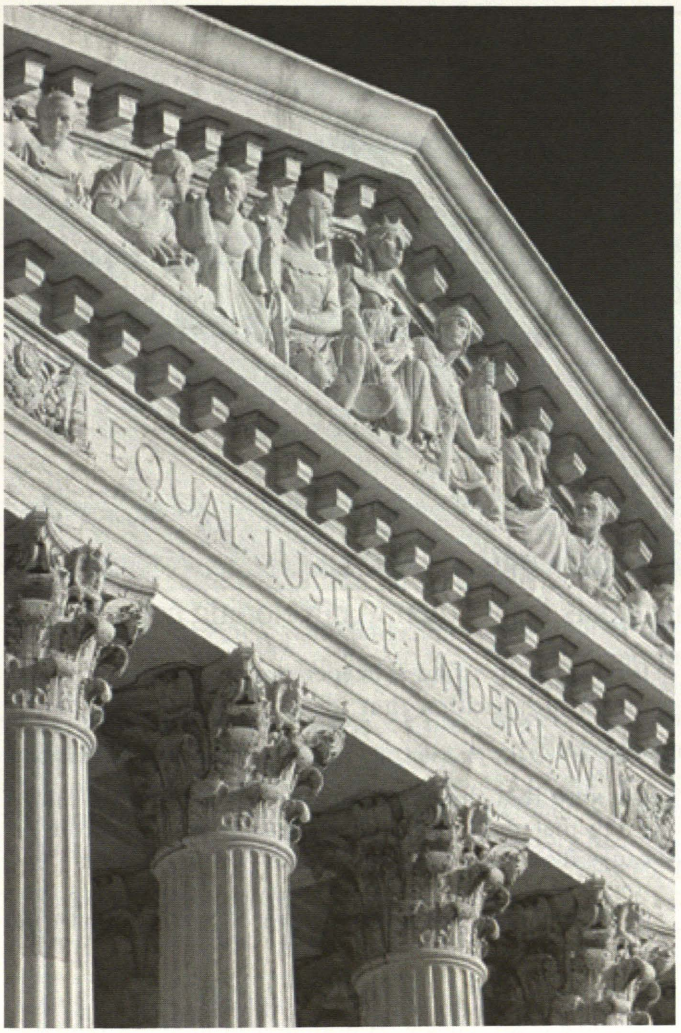
When describing individual justices on the United States Supreme Court, people often utilize the words liberal or conservative; these labels, however, are a boorish oversimplification—at best uninformative and at worst patently misleading. Indeed, there exists considerable confusion and dissention regarding what the terms liberal or conservative exactly mean in a judicial context. In evaluating the opinions of the Court, one must draw a distinction between the outcomes of certain cases and the process by which those outcomes were achieved. For instance, a so-called conservative decision, one which protects states' rights or promotes *laissez-faire* economics, could be arrived at via judicially active means. Conversely, a nominally conservative decision-making process involving the exercise of judicial restraint could at times lead to progressive results.

Hence, when speaking of an individual justice, it is much more important to observe not *what* he decides in any particular case, but rather *how* he arrives at that decision. Consequently, a justice's political ideology or party affiliation is largely immaterial. It is often said that justice is blind; the members of the Supreme Court—men and women who wear nondescript black robes and are identified by the very title of justice—are the physical embodiment of that axiom. They must be blind not only to the prevailing political fashions of the day, but also to their own prejudices and personal beliefs as well. Where, then, lie the loci of authority from which Supreme Court justices can legitimately derive their decisions? One such locus—indeed, the most central and powerful one—is the Constitution of the United States.

Each justice who sits on the Supreme Court possesses a responsibility to construe the Constitution strictly, in acknowledgement of the fact that the framers of that document placed severe limits on the powers and scope of the government therein delineated in an effort to maximize the liberty of each individual citizen. Only by upholding the original intent of the framers as enshrined in the exact words of the Constitution, and not by overstepping those bounds, can the Court maintain that principle. Therefore, the actual text of the Constitution—no more, no less—must be the ultimate guide to the procurement of justice in the American system. Writing for the Court in *Marbury* v. *Madison*, Chief Justice John Marshall stated that "it is emphatically the province and duty of the judicial department to say what the law is." In other words, the duty of the Supreme Court is to interpret the Constitution (the fundamental law of the land) and other laws of the United States, not to legislate or execute those laws.

To that end, a Supreme Court justice must avoid adhering to the doctrine of substantive due process, famously articulated in the 1905 Supreme Court decision *Lochner* v. *New York*. In his majority opinion, Justice Rufus W. Peckham argued that an "act must have a more direct relation, as a means to an end, and the end itself must be appropriate and legitimate, before an act can be held to be valid." Thus, Peckham believed that the Court had the power and responsibility to opine upon the validity of any piece of legislation, in effect substituting its own judgment for that of the legislature. Such a view is not merely undemocratic, but also anti-majoritarian in the extreme. Dissenting passionately, Justice Oliver Wendell Holmes advocated judicial restraint, cautioning against allowing the opinions of a small group of justices to overrule a majority of the legislature, since reasonable men may often disagree on sensitive issues (e.g. what does or does not constitute a justifiable action under a state's police power, which was the central substantive question in *Lochner*). Thus, Holmes articulated the idea that the Supreme Court ought to exercise its power of judicial review only rarely and with great humility, deferring to the Congress, as the representatives of the people, whenever possible.

Zheyao Li *is a senior in Pierson College majoring in Political Science and History.*



***Supreme Controversy**: As Congress fills two high court openings this fall, public debate over the judiciary's powers and limitations has been reignited. (Robert Shafer/Getty Images)*

Alexander Hamilton, in *Federalist No. 78*, wrote that the judiciary "may truly be said to have neither *force* nor *will* but merely judgment," and thus "the general liberty of the people can never be endangered from that quarter...so long as the judiciary remains truly distinct from both the legislature and the executive." Indeed, it is when justices on the Supreme Court begin to exhibit such arrogance as to allow their individual will to interfere with the adjudication of law, that the Constitution, in the words of Thomas Jefferson, becomes "a mere thing of wax in the hands of the judiciary, which they may twist and shape into any form they please." Because they potentially wield so much power, Supreme Court justices must be careful in limiting the amount of power they actually exercise.

In recognition of the dangers of judicial hubris, Supreme Court justices generally rely on the doctrine of *stare decisis*, a fundamental tradition of American jurisprudence that recognizes the controlling nature of precedents. At the same time, this respect for earlier decisions of the Court, while often prevailing, does not signify that those precedents are necessarily binding, but rather it is a sign that any opinion of the present or future must be guided by the lessons of the past. Justices may, however, on occasion find it necessary to overrule precedent, particularly when they find that an earlier decision, upon closer inspection, is in fact odious to the Constitution and was therefore improperly decided in the original case.

Such a charge may be levied against *Roe* v. *Wade* and *Planned Parenthood* v. *Casey* (which reaffirmed the central holding in *Roe*) as the majority of justices in those cases, when confronted with a lack of support either in the concrete text or history of the Constitution, instead chose to rely upon their personal beliefs and biases to decide the case. Moreover, the lack of identifiable bright-line legal distinctions in those opinions exemplified the logical indefensibility of both *Roe* and *Casey*, thereby certifying the subjective and capricious nature of those opinions.

A proper Supreme Court justice, then, must exercise judicial restraint, with appropriate deference to the text of the Constitution and the original intent of the Framers of that document, while insisting upon the use of bright-line distinctions in order to preserve objectivity and equality of law. Only in this way can Supreme Court justices maintain their proper role as arbiters of justice, rather than dictators of law.

"The Supreme Court ought to exercise its power of judicial review only rarely and with great humility, deferring to the Congress, as the representatives of the people, whenever possible."

WOMEN'S RIGHTS UNDER SIEGE

An Interview with Mary Quin

Mary Quin is chair of the Centre for Population and Development Activities, whose goal is to "equip and mobilize women to achieve equality." This goal is embodied by Mary Quin, who holds a BS in physics, a Harvard MBA, and a PhD in materials engineering. She was a delegate to the NGO Forum of the UN Fourth World Conference on Women in 1995. In 1996 she launched the 100 Heroines Project in celebration of the 150th anniversary of the first women's rights conference in the U.S. *The Politic* sat down with her to discuss terrorism, her experiences, and her goals for women in developing countries.

Your book *Kidnapped in Yemen* was based on your experiences with terrorism a few years ago. Could you please share in your own words what happened?

I was part of a tourist group in December of 1998, which was ambushed and kidnapped by a militant organization in the south of Yemen. It turns out what they wanted was to exchange us for British militants who had been arrested in Yemen a few days before we had started our tour. In the process of writing my book regarding the experience, I interviewed one individual, Abu Hamza, in the UK who has subsequently been charged with terrorism related activities. His son and step-son had been arrested, tried and sentenced to prison terms in Yemen. I had dealings with terrorism to the extent of being kidnapped and I did research on the particular situation in Yemen as background for my book.

After your research, did you come to a particular conclusion of what seems to lead to terrorism?

I think my conclusion is that there is no one agenda, even among Islamic fundamentalists. Groups in different countries, and even different parts of the same country, may have quite different agendas. The group in Yemen, while it's ideologically tuned in to Osama Bin Laden, has a local agenda: converting southern Yemen into an Islamic state no longer under the control of the current secular government. Even these young guys who were arrested in Yemen had different motivations. Some of them were religious zealots. I think probably at least one of them is not particularly religious but just in it for the adventure and the money. It appears that they were paid to carry out attacks on targets in Yemen. So I think that it's a mistake to assume that there is one terrorist agenda even in Islamic terrorism.

But you didn't find a deeper underlying cause, a sort of desperation that forces people to resort to terrorism?

I'm sure that there are some that feel that way and I think that there are others who are drawn into it because it's a more interesting and exciting life than getting a real job and working every day. For others their involvement is politically driven rather than based on profound religious belief.

How do you feel that current American foreign policy is affecting the amount of terrorism? Has the war in Iraq led to more or less terrorism?

It creates an excuse for terrorism. For example, being in Iraq has created a situation that encourages more young men, who already were searching for motivation, to participate in Jihad. It's attracted them to Iraq from neighboring countries. One of the reasons given to justify the U.S. invading Iraq and deposing Saddam Hussein was that Osama bin Laden and Saddam Hussein were potentially in league with one another. I'm no expert in any of these fields, but, based on what I learned while doing research for my book it was pretty obvious that Saddam Hussein was exactly the kind of Muslim leader that Osama bin Laden wants to depose. So I found it hard to believe that U.S. policy makers could really believe the arguments that we needed to invade Iraq because there was some kind of alliance between bin Laden and Hussein whose own philosophies were so opposed.

One of the ways of combating terrorism is by strengthening the foundations of a country. What are some of the most successful programs that CEDPA has promoted in the Middle East?

***A Voting Class**: An election worker explains how to vote to an assembly of Afghan women at a registration center. CEDPA emphasizes the enfranchisement of women to the development of a strong political foundation, essential to progress, in any country. (Shai Marai/ AFP/Getty Images)*

We've done a lot of work and had some very successful programs in Egypt. We are currently looking at taking those same projects to other parts of the Middle East, including Yemen. Successful projects in Egypt have been focused on giving girls in villages more opportunities through education. Programs involve the whole village and encourage parents to send their daughters to school. Working with local organizations, CEDPA provides extracurricular classes that teach girls everything from personal hygiene to community leadership. The objective is to expose young girls to other life opportunities that they might want for themselves as opposed to the very traditional role of only looking after the family. An important part of this has been trying to eliminate the practice of female circumcision which is still quite widespread in rural Egypt. Not only is the practice of female genital cutting (FGC) painful for young girls but it also presents many health risks.

As women's rights are encouraged and protected in formerly male-dominated societies, how do the dynamics of the society change?

One of the other things that we were active in promoting in Egypt, as well as southern Nigeria, is encouraging women to register to vote and exercise that right. By doing so, we increase women's chance of having a role in the direction of their countries and in promoting democratic societies. I think that just enfranchising women can have a huge impact on which way a country proceeds. When a country pays attention to the way women vote and to women's opinions in a way that they haven't before. There are very positive consequences. Focusing on education and healthcare for women and girls significantly improves the future prospects for the whole population of a country. Citizens, both women and men, who are healthy and educated can participate in the economy in a more productive way.

Many nonprofit organizations encourage women's involvement in small businesses by offering micro loans – how successful has this been in improving the economies of developing countries?

I don't have any direct involvement with that, but anything that allows women to have their own source of income and to be able to make choices about how they spend their income is generally good for society. I do know that data have shown that when micro loans are made to women for business startups they tend to use their income for their children and family in terms of better food and better healthcare to a greater extent than when loans are made to men. Anything that helps education and health in a society helps create a much

"Ultimately women's rights in every country have to be driven by and wanted by the women in those countries."

***A Victory for Justice**: Afghan women celebrate increased freedom after the fall of the Taliban. The declaration of women's rights has lead to increased political freedom and civil liberties for Afghan women. (Scott Peterson/Getty Images)*

better foundation for the future.

In Afghanistan you did some work drawing up a declaration of women's rights. Can you tell us a little more about this?

Before the U.S. deposed the Taliban, I worked with a group of Afghan women on women's rights issues. A conference was organized in Tajikistan, one of the countries bordering Afghanistan. The purpose of the conference was to get as many Afghan women together as possible to draw up a declaration of the essential rights of Afghan women. Basing their language on various UN documents on human rights, over 200 Afghan women, including some who were able to come directly from Afghanistan, participated in creating this explicit statement of the rights they demanded for themselves. After the fall of the Taliban, some of these same Afghan women continued to work for those rights, and they pushed very hard and successfully to get much of the declaration incorporated into the new Afghan constitution.

"Just enfranchising women can have a huge impact by forcing a country to pay attention to women's opinions."

Has this declaration improved the situation and had a positive influence?

Hugely positive. It has created a network of women in Afghanistan who have seen that they can go back into that community and push for much more equal rights for women. Afghanistan is clearly not as repressive as it was before the fall of the Taliban, but a lot of local social pressure is still on women that limits what they can do and how much freedom they have outside the home.

What are the next steps that we can take nationally and individually?

Here in the U.S. we have to draw more attention to and speak out against the kinds of legislation that's passed in this country to restrict nonprofits from carrying out programs on behalf of women. For example, the Global Gag Rule denies family planning funds from U.S. government departments to any foreign NGO that uses its own money, not even U.S. funds, to conduct research on unsafe abortions or provide information about abortions. The loss of US funding to a foreign NGO such as a small rural clinic often also eliminates a whole range of other reproductive health services while doing nothing to reduce unwanted pregnancies and therefore reduce the occurrence of abortion. A more recent rule requires any nonprofits that receive government funding to have a written policy saying they don't support prostitution or sexual trafficking. Of course most women's organizations don't support prostitution or trafficking, but ironically, these policies create difficulties in being able to work with and help prostitutes. This in turn interferes with the challenge of preventing the spread of AIDS. Some of the ideology-based policies of the current administration are really undermining women's rights and health worldwide, but many American women don't realize what's going on.

Ultimately, women's rights in every country have to be driven by and wanted by the women in those countries. We can do a certain amount to help them develop skills and help show them how women's rights have been achieved in other parts of the world. I think that ultimately we have to respect that women themselves in different countries like Afghanistan have to take ownership and responsibility in achieving rights for themselves. P

STATE VS. PRIVATE OWNERSHIP OF NATURAL RESOURCES

Why Do the Privatization Experiences in Peru and Zambia Differ?

by Alexis Ringwald

From the colonial period to the present, the mining industry has been one of the most important and dynamic sectors of the Peruvian and Zambian economies. Particularly over the past century, political and economic considerations for the industry have formed the path of economic growth in these countries, shaping the debate over the development of strategic natural resources and exemplifying the relevance of the "resource curse." Peru and Zambia are two countries where economic policy and performance have been heavily determined by the performance of the mining industry.

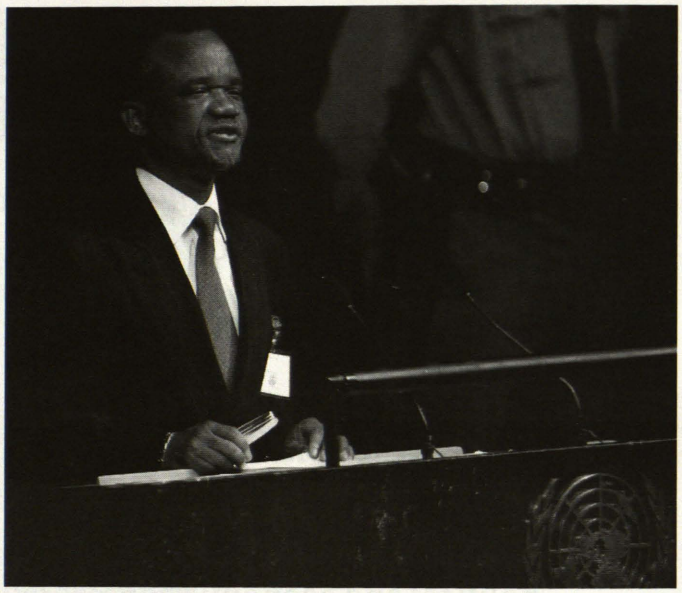
In each case, the country engaged in a decades-long debate over state vs. private ownership of mineral resources—the countries' main source of revenue generation, employment, and exports, as well as its balance of payments problem, fiscal deficit and external debt. The examples of tremendous wealth in the oil producing and exporting countries throughout the 1960s and 1970s affirmed the idea that primary product exports, like mining, could serve as a critical factor in a country's economic development. As a result, a wave of nationalizations occurred in the 1960s and 1970s as many developing countries, Peru and Zambia included, sought to regain control of the strategic sectors of their economy, and thereby attain financial independence and promote development. Faced with severe economic crises, caused in part by failed state ownership of natural resources, both countries recognized by the early 1990s that structural adjustment programs would need to be implemented to save their deteriorating mining industries and national economies.

The question regarding the ownership of natural resources can be understood by analyzing the influence of external pressures and internal interests on country leaders in Peru from 1990 to the present and Zambia from 1991 to the present. In the context of strong external pressure from international financial institutions (IFIs) to privatize and weak internal influences from politically powerless domestic interest groups, it appears that a similar desire to strengthen executive power on the part of both leaders helps explain why Peru privatized its mining operations and Zambia did not, despite campaign promises to the contrary. This analysis reveals that the paths of Peru and Zambia to privatization differ insofar as each democratically-elected leader pursued a privatization strategy that would most easily facilitate his dominance of the executive power given the existing external and internal pressures.

In the decade previous to the 1990 election, Peru had entered a crisis in political representation in which the nation's political parties increasingly failed to represent the country's various interest groups. As a result of this changing relationship between politics and economics, the mining sector, labor, and the general electorate found themselves unable to influence former Peruvian president Fujimori's policies.

Fujimori thus began his administration in the unique position of lacking a proper electoral party but having no single opposition figure or party confronting him. He used this complete autonomy to enact a program that would stabilize the country and allow Peru to "reinsert" (*la reinserción*) itself back into the international economy. Because an executive enters into IMF agreements unilaterally without the approval of other veto players, like the legislature, reform-minded executives often use the IMF's leverage to push through unpopular policies. Hence, Fujimori, an outsider with no particularly strong obligations to the mining sector, labor, or the general electorate, instituted authoritarian rule and subscribed to the IMF path to privatization in order to bypass opposition and strengthen his autonomy to make unilateral decisions. Furthermore, with an international seal of approval like the IMF supporting him, Fujimori could gain validity as a capable politician and thereby establish his otherwise unknown and tenuous presence in Peruvian politics. Thus, the path to

***Alexis Ringwald**, a 2005 graduate of Yale College, is pursuing a Master of Environmental Management from the Yale School of Forestry and Environmental Studies.*



***Man of the People**: Zambian president Frederick Chiluba addresses the United Nations General Assembly in 2001. Chiluba used his substantial electoral mandate in the early 1990s to expedite the privatization of natural resources. (Matt Campbell/AFP/Getty Images)*

privatization was chosen by a semi-authoritarian political leader who determined that endorsing IFI neoliberal reform policies would offer him the greatest opportunity to secure his dominance of executive power.

The popularly elected President Chiluba of Zambia also found himself in the somewhat ironic position of being able to impose authoritarian-like rule within Zambia's new but imbalanced democracy. Chiluba's landslide victory in the 1991 election had established a political environment in which accountability and checks and balances of the executive had little value. With 84 percent of the total votes (albeit from only 35 percent of total eligible voters in Zambia) and 120 of 150 Parliament seats, this overwhelming success in Zambia's first democratic election ironically furnished the Movement for Multiparty Democracy (MMD) with a strong majority power reminiscent of the previous autocratic rule under the United National Independence Party (UNIP). Thus, as a new political elite with autonomous "executive dominance," Chiluba's presidential style was not unlike the one-party rule characteristic of Zambia's earlier authoritarian regimes.

"Strong external pressure and weak domestic opposition explains how the president was able to enact privatization policies at a pace paralleling his domination of the policy-making process."

In addition to the MMD's dominance in the government, strong external pressure and weak domestic opposition further explains how the president was able to enact privatization policies at a pace that paralleled his strategy to dominate the policy-making process. Despite progress towards political and economic liberalization, domestic interest groups found themselves unable to act as a political force to hold Chiluba accountable to their demands for solutions to Zambia's economic woes. In the absence of any credible threats to MMD's power, Chiluba's willingness to commit to his campaign promises, much less domestic group interests, became uncertain. As a result, Chiluba chose a strategy that both allowed him to maximize his gains financially and fortify his dominance of the executive power. By half-heartedly endorsing IFI neoliberal policies while delaying privatization, Chiluba, like Fujimori, was able to maintain a steady stream of aid and support for his new government. At the same time, he could profit financially from ZCCM state patronage and the domestic backing from insider elites, additional benefits that were unavailable to Chiluba's "outsider" and populist Peruvian counterpart who personally did not stand to benefit financially from reforms.

Thus, in the context of strong external pressure to privatize and limited internal opposition from domestic interest groups, a situation not uncommon in many developing countries, leaders of nations may be faced with the following two main options concerning a country's strategic natural resources: either a full endorsement of IFI policies for privatization, or in the presence of established patronage channels and insider support, a delay of endorsement in order to maximize potential benefits to political elites. Hence, this analysis recognizes the role played by decision-makers within the state apparatus in choosing between alternative policies in pursuit of their underlying objectives. This range of options is limited, however, and is shaped by a variety of factors including economic conditions and the legacies of patronage and neopatrimonialism from previous

administrations. External pressure and interests from IFIs and other international forces contribute as well to the variety of options available to a political leader. Other actors such as mining companies, labor and the general populace also have independent objectives and strategies, but their inability to directly influence the decision-making process only enhances the autonomy that political leaders have in selecting from the range of viable options, including the decision to privatize. As a result, the executive is able to pursue a strategy that facilitates dominance of the executive power.

An important question that remains to be answered is whether privatization offers an escape from the "resource curse." Countless studies document a correlation between resource abundance and negative impacts on economic performance. Interestingly enough, much of the "resource curse" literature draws its empirical data from the same time period, mainly the late 1960s to the 1990s, during which state ownership over the exploration and production of mineral reserves is an attribute common to most resource-rich states, including Peru and Zambia. Consequently, it may be that the ownership of mineral resources is a significant variable in the measure of country performance. If so, then part of the resource curse may be due to state ownership, and privatization could offer a simple solution.

A cursory comparison of the economic growth indicators in Peru post-1990 and Zambia post-1991 may offer an early test of this hypothesis. After a decade of privatizing, Peru's total revenues from privatization had reached $9.23 billion by 2000, an amount equivalent to 17 percent of the country's annual GDP. The mining sector was by far the largest contributor to this investment, representing over $4.9 billion of the total. The Peruvian economy, meanwhile, rapidly rejuvenated under privatization with GDP growth rates increasing from –12 percent in 1989 before Fujimori's election to +9 percent in 1995, while copper output grew 46 percent between 1992 and 2000. With the Peruvian Ministry of Energy and Mines projecting that foreign investments in the mining sector alone will total approximately $9 billion between 2001-2009, it appears that privatization of the mining industry will contribute significantly to Peru's economic development.

In Zambia, meanwhile, high inflation, massive external debts, and a decline in real GDP per capita since 1991 resulted in the deterioration of Zambia's economy. Moreover, since the democratic election, Zambia dropped about thirty places to 130 out of 173 countries in the UNDP's 1993 Human Development Index. According to many, the decline in the quality of life was caused to a great extent by a "poorly implemented structural adjustment program [that] imposed unprecedented hardships on the people." Whereas before the 1991 election many believed that Zambia and its copper industry had nowhere to go but up, the MMD's first eight years in office demonstrated otherwise when Zambia experienced a further -42 percent drop in copper production. The losses incurred from "government dithering" impacted the viability of both ZCCM and the Zambian economy in terms of lost output, reduced investment, higher national debt due to increased external borrowing, and an inability to return to a sustainable growth path. In 2000, the MMD government accepted the inevitable, and finally agreed to sell ZCCM to Anglo-American. The nominal price received represented a token payment that covered only a fraction of the company's total debt. There is no denying the fact, therefore, that "the failure of

"We are forced to face the disturbing implication that the political practices associated with authoritarian rule may prevail within the formal structures of democracy and a market economy."

***Perpetual Unrest**: Zambians chant in support of the ruling Movement for Multiparty Democracy before a decision is handed down regarding fraud in the 2001 elections. The MMD was responsible for resource privatization and a collapsing economy in the mid-1990s. (Mackson Wasamunu/AFP/Getty Images)*

"Political and economic considerations for the mining industry have shaped the debate over the development of strategic natural resources and exemplifying the relevance of the 'resource curse.'"

the MMD government to quickly resolve the problems of ZCCM profoundly damaged the Zambian economy."

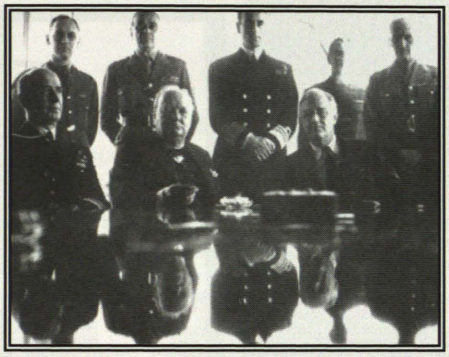
This cursory assessment of the economic growth indicators in relation to the mining sector suggests that privatization of the extractive industries did indeed contribute to substantial economic growth in Peru, whereas failure to privatize in Zambia may have resulted in its lack of growth over the past decade. This does not mean, however, that privatization is the best solution today for Zambia, nor does this conclusion intend to suggest that privatization in Peru has been a complete success, as there are numerous other factors (e.g. social, environmental costs) to consider. What this analysis does show, however, is that mining can be good for development, and privatization may be a means to achieving that goal.

In an age of rapid global growth and increasing resources consumption, the ownership of natural resources question can play an important role in determining the success of a resource-dependent nation. The question that remains to be answered is why interest groups in the late 1980s and early 1990s were so weak as to allow the country leader to pursue the privatization strategy that most facilitates dominance of the executive power, not improvement of the national economy. After the 1990 election in Peru, business and mining interests found it difficult to form a unified coalition following the defeat of their original candidate, Mario Vargas Llosa, and the successful election of an outsider with few ties or obligations to established elites. Propitiously for these groups, however, Fujimori endorsed policies for neoliberal economic reform. In Zambia, meanwhile, the established mining elites from ZCCM conveniently found an immediate ally in Chiluba who sought to amass political power and wealth as a dominating executive. In both countries, however, despite the apparent alignment with business and mining interests, the new presidents assumed office with a determination to rule independently of outside influence, including that of the mining industry.

In both Peru and Zambia the weakening of domestic political voices like labor and the electorate was a factor of the ongoing process of political liberalization, which had facilitated the proliferation of NGOs and numerous interest groups, and thereby reduced the influence of these associations—a phenomenon known as the pluralist paradox. In Peru, Fujimori directly codified this paradox in a series of laws designed to democratize any popular movements by labor and other interest groups, and thereby undermine their ability to engage in collective action. In Zambia, meanwhile, the advent of democracy with concomitant freedoms of speech and protest indirectly, yet paradoxically weakened the membership numbers of traditional opposition forces like business and labor when individuals splintered off to join other groups, thereby making it increasingly hard to be seen and heard in public fora. Thus, weakened by recent economic crises, internal division, and lack of unity, labor and the electorate in both countries found themselves disregarded in the political decision-making process.

This analysis suggests that the absence of accountability and an effective system of checks and balances allowed each leader, pressured by external forces and unrestrained by domestic interests, to pursue a path to privatization or not as befitted his strategy to strengthen executive power. If this is true, then we are forced to face the disturbing implication that the political practices associated with authoritarian rule, such as centralization of power in the presidential office, weak checks from domestic interests, and extensive use of state patronage for political gain, may prevail within the formal structures of democracy and a market economy.

In order to ensure that political leaders elect policies in the best interest of the citizens and not the executive, substantial policy pressure, both externally and domestically, will need to be imposed on Peru, Zambia and other imbalanced resource-dependent states for improved governance, a fortified system of checks and balances, and empowered civil society representation with a more direct influence on the decision-making process. These changes will be essential not only in creating better functioning democracies, but also in potentially ensuring that the ownership of a country's prime national asset, its natural resources, is not an arbitrary outcome that depends on political leadership. P



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RUSSIA
A Snapshot View

MOSCOW—Chic Boutique

Shopping centers in Moscow are new, modern, and bustling with business. A consumer class has arisen in the past decade that is generating economic activity for the new Russian economy.

ST. PETERSBURG—The Digital Age

The internet café on Nevsky Prospect is always full of customers, Russian and foreign. Russia has very much entered the digital age.

ST. PETERSBURG—New P

Construction of new apartment bu these is widespread across Russia. generation typically has more econ move into the apartments, wh generation's opportunities are more

MOSCOW—Cafes Galore

Numerous sidewalk cafés and restaurants in St. Petersburg and Moscow are often filled with customers, a sign that people have more disposable income and leisure time. Restaurants used to be limited to the wealthy, but it has become more common for Russians to go out to eat.

RAILWAY—Market for Potatoes

The stops along the Trans-Siberian railway are filled with vendors selling food for travelers. The simple food and poor vendors show the disparity between the rural Russia and its big cities.

RAILWAY—Market for Oil

Russia's dependence on oil is evident along the Trans-Siberian railway, where trains frequently pass by carrying the commodity throughout the country.

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IRKUTSK—Land to Own

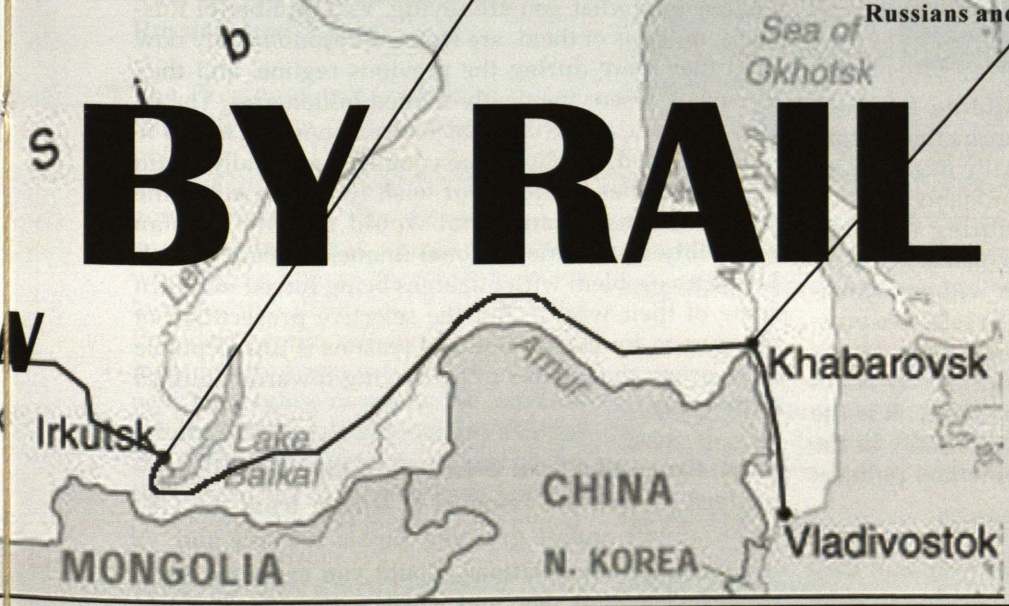
With the right to own land in the constitution since the mid-1990s, many Russians have taken to building a life outside apartment buildings. This family in Irkutsk built a bathhouse and garden on a plot of land near their apartment building, and is now planning to build a home.

KHABAROVSK—A Cultural Legacy

Cultural treasures such as this riverside park in Khabarovsk are modern and well-kept, maintaining the Russian government's emphasis on high culture. Khabarovsk is a major tourist center for both Russians and Chinese.

BY RAIL

This summer The Politic *Features Editor Wells O'Byrne traveled across Russia on the Trans-Siberian Railway, talking with Russians along the way to get a ground's-eye view of the country's future. As the photographs show, Russia faces a difficult break from the past, but it is a land of growing opportunities.*



Russia: Vital Statistics

Government
Type: Federation
Independence: August 24, 1991

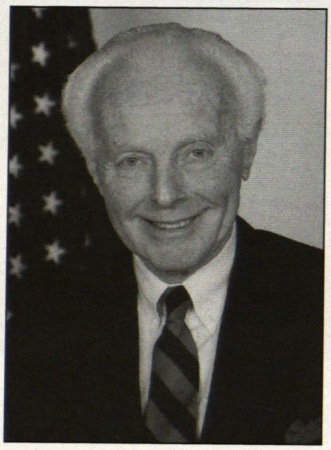
People
Population: 144 million
Annual growth rate: -0.45%
Literacy: 99%
Life expectancy: 60 years, men; 73 years, women

Economy
GDP: $613 billion
Growth rate: 6.8%
Per-capita GDP: $4,000
Purchasing power parity: $8,280
Exports: $152.7 billion
Imports: $79 billion
Major markets: EU, China, Japan, former Soviet states

Data for 2004. Source: U.S. Department of State, 2005.

DEEP AND FUNDAMENTAL DIFFERENCES

An Interview with Congressman Tom Lantos



Congressman Tom Lantos (D-CA) is currently the ranking Democrat on the House International Relations Committee. He is the only Holocaust survivor to be elected to Congress. He was in Moscow on May 30 when Mikhail Khodorkovsky, former head of the Russian oil company Yukos, was sentenced to nine years in prison for tax evasion and fraud. On September 13, Congressman Lantos sat down with *The Politic* to discuss the trial and the future of U.S.-Russian relations.

On the day of the Khodorkovsky verdict, you stood outside the courthouse and denounced the trial as a "kangaroo court" and "pre-determined politically." What about this case evoked such a passionate condemnation?

Khodorkovsky was successful in building the most transparent Western-style corporation in the history of Russia. Obviously the trial is politically inspired, it's a kangaroo court. All of the oligarchs probably violated many laws, particularly since laws during the early 90's were conflicting and internally inconsistent, so by definition a person could not function without violating laws. The Putin regime has engaged in selective prosecution because they were concerned about Khodorkovsky's political ambitions. So it clearly is not a legal case in the Western sense of the term. It is the use of the Russian legal system, which is totally in the pocket of the Kremlin, to eliminate a potential political rival.

There is the illusionary, outrageous element that Khodorkovsky is innocent until proven guilty, and they have kept him in a cage as an animal all this time to break down his resistance and will-power and to humiliate him. It is quite clear that under Putin Russia is going back to a Soviet-style system in which the executive branch, the legislative branch, and the judicial branch are dominated by the Kremlin, and there is no free media. It is my feeling that we need to call a spade a spade and get rid of Russia as a member of the G8.

Although the international community decried the process and outcome of the Khodorkovsky trial, many ordinary Russians view him and other oligarchs as criminals for their alleged abuses during the rapid privatization period of the early 90's. Should oligarchs like Khodorkovsky be held accountable for their actions during this tumultuous period?

I agree with what you are saying. Vast number of Russians, millions of them, are worse off economically now than they were during the previous regime, and they obviously resent the newly-minted billionaires. The issue, however, is one of equal justice: if one oligarch is to be prosecuted, all should be equally. Technically, Putin has stated that he does not wish to revisit all of the privatizations because that would destroy Russian credibility in the international financial arena, though I have no problem with oligarchs being forced to return some of their wealth. But the selective prosecution of one person for clearly political reasons is unacceptable in a society that claims to be moving towards political democracy.

After the verdict, and even before the verdict, you pledged to seek the removal of Russia from the G8, and you now oppose granting Russia full free and permanent trade relations. Could you explain your reasoning behind this, and which actions by Russia have led you to this conclusion?

The G8 was originally the G7 and we initially invited Yeltsin to participate at the meetings as a guest. We subsequently advanced the confidence of him by inviting Russia to be a member. The G8, theoretically, is made up of democratic countries that are important in terms of their international economic weight. Russia is clearly not yet important enough in terms of its economic weight, because apart from the oil industry, which is providing huge income to the Russian government, the Russian economy is comparable in size to that of a small Western-European country like Belgium or Holland. But most significantly, membership in the G8 is restricted to democratic countries, and as I mentioned

a moment ago, Russia is moving precisely in the wrong direction, and is moving in the direction of reestablishing the monopoly power of the Kremlin along all aspects of society. The Kremlin controls the Duma, the legislature, the courts, the media, and has abandoned the notion of provincial government as being elected. Imagine what would happen in this country if Bush would announce tomorrow that the Governor of New York and the Governor of California will be designated by him, not elected by the people.

President Bush has been widely quoted as saying about Putin in 2001: "I was able to get a sense of his soul, a man deeply committed to his country and the best interests of his country." What are your thoughts on Putin as a leader, and what do you hope to see in future Russian leadership?

The President was well-intentioned when he made that statement at that point, because Putin was in the beginning of his career and he could have gone either way. The President, I assume, hoped that words of praise would give him an incentive to move in a positive direction. I am sure the President would not repeat that statement today. Putin is former KGB colonel. The regime now is in the hands of former KGB officials, and I am very skeptical about the regime under the present leadership developing along democratic lines. A great historical opportunity has been missed. Russia will certainly not be a Stalinist society because there is no way in 2005 in Russia to recreate a Stalinist society, but it will be a fundamentally undemocratic society.

Even if President Vladamir Putin is slowly consolidating power, he was re-elected in 2004 by an overwhelming majority. Can we as outsiders condemn his moves as undemocratic if Putin does so with the approval of the Russian people?

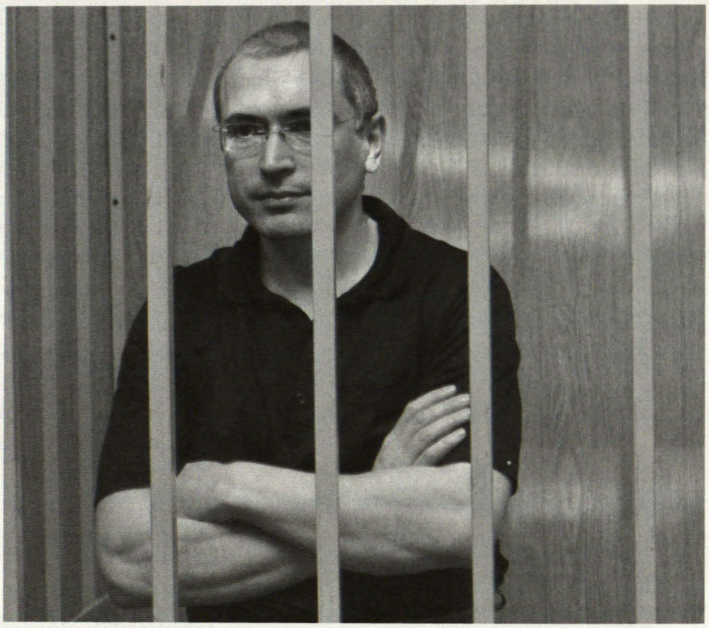
Elections by themselves do not prove much. Hitler was elected to office. The fact that Putin has destroyed effective democratic opposition clearly meant that the elections would result in his victory. The Russian people are tired of turmoil, Putin has provided some degree of stability, and the price of oil has provided an improvement in the living conditions for millions of Russians. But that is a long ways from the kind of democratic development that friends of Russia, like myself, hoped for after the collapse of the Soviet regime.

President Bush frequently describes Russia as a key ally in the war on terror, yet it is well known that Russia supplies arms to Syria and nuclear technology to Iran. Can the United States call Russia an ally in the war on terror if it provides these dangerous weapons and technologies to states that the U.S. cites as supporting terrorism?

Russia does cooperate in some aspects of the global war on terrorism. But the reservations your question implies indicate that we have to be very careful in defining the extent to which we co-

***Moot Court**: Standing outside of the courthouse, Congressman Lantos condemns the Khodorkovsky trial on the day of the verdict. Lantos called the trial a "kangaroo court" and "politically predetermined." (Tatyana Makeyeva/Getty Images)*

***Is Eight a Crowd?** The G8 leaders, as well as the President of the European Commission, met in Scotland in July 2005 for the annual G8 summit. Congressman Lantos, as well as many other members of Congress, want to take Vladimir Putin and Russia out of the picture. (Michael Kappeler/Getty Images)*



Show Trials? *Mikhail Khodorkovsky stands trial from behind a metal cage. Tom Lantos charges that the court placed the former oil tycoon in a cage in order to "humiliate him" and "break down his resistance." (Michael Kappeler/Getty Images)*

operate, and the extent to which the Russians are undermining our goals, such as Russians' actions in respect to nuclear development in Iran.

Russia recently conducted a series of war games with China. How will the cooperation between these two nations affect U.S. interests in the region, and U.S. policies toward both countries?

Russia and China both profoundly resent that the United States is the one remaining global superpower, which gives them reason to cooperate and undermine U.S. policy objectives whenever they can, as in the most recent case of opposing the referral of Iran's nuclear program to the United Nations Security Council.

"Russia and China both profoundly resent the fact that the U.S. is the one remaining global superpower, which gives them reason to cooperate and undermine U.S. policy objectives."

Unduly Accused? *Supporters of Khodorkovsky protest the government's actions. Although many Russians sympathize with him, most view him and other oligarchs as criminals for their alleged abuses during the privatization period of the early 1990s. (Tatyana Makeyeva/Getty Images)*

Over the past few years, there has been tension between Russian and the U.S. over many issues besides the Khodorkovsky trial, including Iran's nuclear ambitions, Ukraine's Orange Revolution, American airbases in Central Asia, and the war in Iraq. Do these issues reflect temporary strains in Russo-American relations, or deeper, more fundamental differences between the two countries?

I think they are deep and fundamental. The Russians are playing not a double game, but a multiple game, cooperating with us on some items, undermining our goals and objectives on other items. The relationship will be extremely difficult and complex, and it will take incredible skills to deal with it.

Where do you see Russia fifteen years from now? Do you believe it will continue this trajectory towards centralization and autocracy?

That is a very difficult question to answer. My hunch is that over the long run, as in China, the liberalizing tendencies will assert themselves. But it is quite clear that the security people who control the Russian government today are hell-bent on maintaining an authoritarian structure. P

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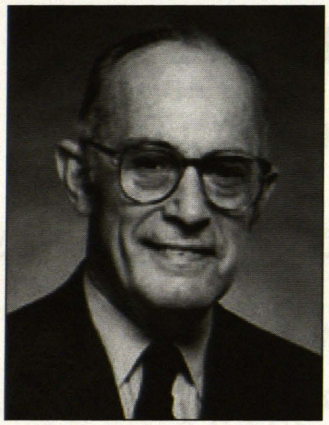
THE WEAK STATE TRAP

An Interview with William Odom



Lieutenant General William E. Odom, U.S. Army (Ret.), is a Senior Fellow with Hudson Institute and a professor at Yale University. As Director of the National Security Agency from 1985 to 1988, he was responsible for the nation's signals intelligence and communications security. He has authored several books on American foreign policy, intelligence, and Soviet affairs. General Odom sat down with *The Politic* on September 13, 2005 to discuss the future of Russia.

Putin has stated that open trade with the international community and free markets are a priority for Russia's new economic policy. However, at the same time he seems to be consolidating state power in the economy, such as in the government acquisition of Yukos. Do you see Russia moving more toward openness or state control in the economy? How?

These contradictory actions are typical of third-world countries that have been trying to develop in the last 50 or 60 years. If you look at countries like Brazil, Iran, Indonesia, Nigeria, and many others, you will find parallel developments. On the one hand, there is a lot of rhetoric and actually some substantive policy to attract foreign capital investment. On the other hand, the political elites in those countries make property rights unstable, plunder the economy, and default on foreign debts, thereby creating conditions that cause some of the Western companies to move out. It seems to me that Russia is now very much in that cycle.

In the early 1950s, when I was an undergraduate, I was told countries like Brazil, Venezuela, Nigeria, Iran, Indonesia, and others were countries of the future. Today they're still countries of the future, fifty plus years later. I would not be surprised to see most of these countries still in this condition 20, 30, 40 years later. I think Russia has gotten into that institutional weak state trap, and is likely to not be able to get out of it in the next two, three, or four decades.

Recently, violence and terror in Chechnya have spread to the entire North Caucasus region. There is now greater instability in these ethnically diverse regions. How do you believe Putin will respond, and what do you see as the long term effects of this response?

Putin will respond ineffectively by trying to repress what's going on there, as he has been doing ever since 1999 in Chechnya. The consequences will be to continue to destroy the local societies to the degree that there's nobody to negotiate with. Law and order will become increasingly difficult to reestablish in Chechnya and probably also in Dagestan, Ingushetia, northern Ossetia, and the three other little republics further to the west.

Putin's policy toward Chechnya has become a major, major constraint on liberal developments in Russia. There is such an abuse of the rights of citizens that it makes a great mockery of the constitutional statements on paper. The prospects of moving closer to the rights in the constitution are made virtually nil as long as this kind of gross violation of the rights and the reckless use of terror against the local population by the regime continues.

In April 2005 Putin's Chief of Staff Dmitri Medvedev warned that Russia could break up into several different countries. Do you see any risk that Russia might disintegrate?

I do not. But let me qualify that. The Russian federation is a very large territory. That it will break up the way that the Soviet Union broke up, which is what Medvedev was talking about, I think unlikely. That would involve areas several regions in the Volga-Ural area leaving Russia as well as a number of the provinces or oblasts in the Far East and the national republics. In the next few years it's not inconceivable that the Russians themselves may decide to abandon these troublesome republics in the northern Caucasus. That is a very, very small part of the country. Ceding independence to those territories or actually expelling them from the Russian Federation would not be what I would call a breakup,

and it would make the prospects for positive liberal political development in Russia much greater.

A longer-term and more serious loss of a region for Russia is the Far East. The Chinese will not necessarily go occupy it and take it over, but the Russians are governing it very poorly. The population is declining in the Far East and the economy is not doing well out there. I do not know whether Russia will lose the territory or make it productive and an attractive place to live. The trends don't look good in that area now.

Putin said in his 2004 speech to the Federal Assembly outlining Russia's economic plan for the next ten years that Russia needs to catch up quickly to the West in order to live up to its deserved place as a great power. Stalin gave a similar message in his speech of February 9, 1946 outlining his post-war economic plan. Do you see any similarities between Putin and Stalin in their plans for the country?

Only rhetorical similarities. The qualitative differences are far greater than any similarities. At the time, the Soviet Union was a great power. Russia is not a great power today. It is a much smaller country, and large parts of it have no real prospects for development, particularly Siberia.

The institutions for control are very weak. It is wandering along in no particular direction, probably not going to improve much. I refer to it as increasingly like the newest member of the third world. That is not the kind of regime that Stalin had. I don't see Russia returning to great power status any time soon. So I don't think one should take this kind of statement by Putin as much more than subjective rhetoric meant to improve the mood in Russia.

Russia is hosting the G8 conference in St. Petersburg in 2006. Do you think the U.S. should encourage Russia's continued membership in the G8 to integrate them more into the world community?

It is almost a joke for Russia to be in the G8. The G7 was originally an exclusive club of stable constitutional governments with market economies whose economic policies and performance had huge consequences for the world economy. Russia's economic performance has only marginal significance. It is difficult politically to exclude the Russians once they've been made members. Unless Russia can transform itself into a mature and stable liberal system fairly rapidly, it will remain a drag on the G8 and risk causing the G8 to become irrelevant.

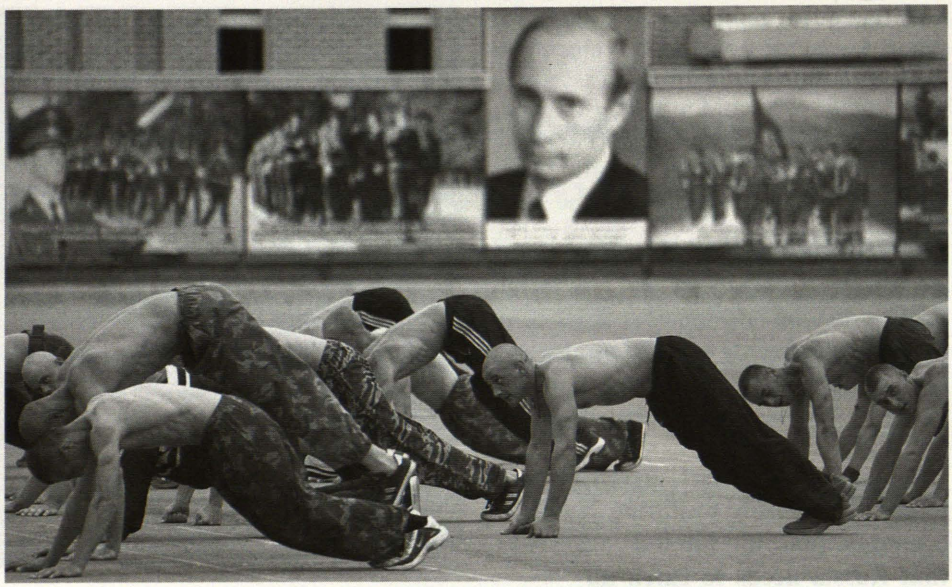
An Illiberal Democracy: *A Russian woman votes in the 2004 presidential elections. President Vladimir Putin won a second term in a landslide victory. The Kremlin has used money from oil revenues to eliminate major political opponents to Putin. (Getty Images)*

Russia has some of the largest oil reserves in the world. How does the possession of oil influence U.S. policy towards Russia and Russia's economic prospects?

Throughout the Cold War, the Soviet Union was very eager to sell us oil. That was a time when Moscow considered the United States an "irreconcilable enemy." They were also eager to see us collapse, and to see us fall in the throes of revolution from which they would benefit. So the idea that we have to be friendly to Russia to get them to sell oil is wrong.

The oil issue that is far more serious in my mind is that countries that depend primarily on exporting natural resources like oil and gas have perverse economic development patterns. They are generally not good tax collectors, which weakens the state. The state ends up in business, the state elites fight over

"One of the most effective things we can do is to encourage the Russians to abandon Chechnya—to completely reverse its policies in the North Caucasus."



***Must Soon Get Stronger**: Russian soldiers train in front of a portrait of Russian President Vladimir Putin. Putin has increased military spending by 26 percent for 2005 in hopes of returning to former greatness. (Viktor Drachev/AFP/Getty Images)*

"Russia has gotten into that institutional weak state trap and is likely to not be able to get out of it in the next two, three, or four decades."

their share of that money, and the citizens get little or nothing.

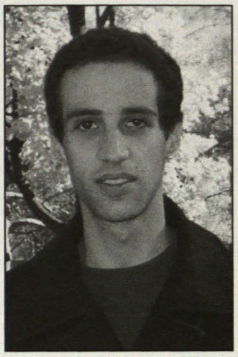
Take a look at Nigeria, which in the 1970s looked like it had a hugely optimistic future in Western Africa, but is a mess today. Venezuela has been up and down in that regard. Oil can have a very perverse impact on a country's economy, although it puts lots of money in the hands of the government. That is happening in Russia today; the high oil prices are putting a lot of money in the hands of the Kremlin. They are able to use that money to prevent other competitive political parties from playing a significant role. At the same time, their investment in non-oil producing activities is not very favorable, so large parts of the Russian economy are in no good straits at all. The aggregate performance figures of how much money is coming into government coffers such as the total GDP look very favorable. I think oil is a much bigger problem for Russia than it is for us or anyone else.

***The Path to Riches?:** An employee of the once-private Russian oil company Yukos turns off a valve at an oil well. The government now controls Yukos and relies heavily on oil revenue as a major source of funding. The high revenues from the 'black gold' may ultimately be to Russia's disadvantage. (Alexander Korolkov/AFP/Getty Images)*

Current U.S. policy towards Russia emphasizes cooperation on issues such as nuclear proliferation and terrorism, as well as devotes resources toward promoting democracy. What do you think the U.S. strategy towards Russia should be?

First, we should not "promote democracy." They already have democracy. What we should be promoting is liberal constitutionalism. And we can promote it, but we can't create it by ventriloquy. Our record of trying to do this for the past 50 or 60 years in the rest of the world is not good. I think we should encourage constitutional order, but we should not expect to have very much success.

One of the most effective things we can do is to encourage the Russians to abandon Chechnya—to completely reverse its policies in the North Caucasus. The developments in that area preclude any serious progress towards constitutional order that is necessary for economic prospects. Our policy of cooperating with Russia on terrorism has caused us to close our eyes to the crimes against Russian citizens that the government is perpetrating in Chechnya. It is a black mark on our standing as a proponent of human rights.



PUTIN'S GRAND STRATEGY

Its Impact for the United States

by Jeff Mankoff

For a brief moment in the early 1990s, the geopolitical struggle between Russia and the United States seemed to have come to an end. Freed from the ideological blinders of the Cold War, the two old rivals appeared ready to join together as strategic partners for the creation of a new, safer world. Almost as quickly as it emerged, this optimism faded, as Russia launched a disastrous war in Chechnya and stumbled toward bankruptcy and authoritarianism. The retreat from democracy in Russia, Moscow's opposition to the war in Iraq, involvement in building a nuclear power plant in Iran, and occasionally hostile Russian rhetoric about American foreign policy have all contributed to a growing sense that, even if the Cold War has not returned, Russia and the United States remain at best uneasy partners and rivals for influence. Russia's failure to integrate into the West, coupled with illiberal domestic politics, have created an enduring pessimism in the U.S. as profound as the initial optimism towards Russia.

America is right to be concerned about Putin's new Russia, but the current mistrust is fed by a fundamental misunderstanding of the principles behind Russian foreign policy. The U.S. has focused on the illiberal developments in Russian domestic politics and Moscow's at-times overheated rhetoric—as when Putin charged certain Western leaders with seeking the territorial breakup of Russia in the aftermath of the Beslan school siege—while overlooking Russia's general acceptance of America's global leadership that has actually prevailed. Moreover, the American leadership continues to underestimate the psychological impact of the Soviet collapse and Russia's consequent insistence on preventing any further erosion of its geopolitical position. It was wrong to think, in the early 1990s, that Russia could rapidly integrate politically and economically with the West. It is equally wrong today to view Russia as a as a disruptive force or as a strategic rival to the U.S.

In reality Putin's diplomacy has been characterized by cautious pragmatism, and an equal level of pragmatism in the U.S. can help ensure productive cooperation between the old Cold War rivals. Putin's strategy for Russia emphasizes reconsolidation at home and the preservation of an international security structure that will allow Russia to eventually re-emerge as an independent force. Putin recognizes that his country is weak, but seems to have no doubts that Russia will recover from its post-Soviet malaise and once again be in position to deal with the U.S., as well as Europe and China, as an equal. Getting there requires that Russia first create a stable, economically prosperous state, as well as restore its military. In the meantime, Putin has made a point to minimize the scope for conflict with the U.S.

Putin's Russia has in fact been surprisingly accommodating of American foreign policy. Putin accepted the American withdrawal from the Anti-Ballistic Missile Treaty and continued NATO expansion (even into the Baltic states) with a minimum of protest. Russia opposed the U.S. invasion of Iraq, but less vocally and less forcefully than traditional American allies France and Germany. The upheavals in former Soviet republics such as Georgia and Ukraine have proven more serious impediments to U.S.-Russian cooperation, but even here, Putin ultimately gave in and allowed pro-Western regimes to take power.

However, it needs to be kept in mind that Putin likely sees economic and political consolidation as a stepping stone to the long term goal for Russia to exert a more assertive foreign policy. Already, Russia is beginning to dramatically increase spending on conventional military forces: the 2006 budget forecasts a 22 percent increase in military spending over 2005 levels (after rising 27 percent the previous year). Russia's official Foreign Policy Concept states that "the establishment of a unipolar world structure that would be dominated by

***Jeff Mankoff** is a sixth-year history Ph.D. student at Yale. In the summer of 2005 he interned at the Carnegie Moscow Center researching Putin's grand strategy.*

***Putting Aside the Past**: Vladimir Putin and George W. Bush hold a press conference at the White House on September 16, 2005. The two discussed nuclear proliferation issues and Russian aid to U.S. hurricane victims. (Chip Somodevilla/Getty Images)*

"It needs to be kept in mind that Putin likely sees economic and political consolidation as a stepping stone to the long term goal for Russia to exert a more assertive foreign policy."

***A 'Deserved' Great Power**: A guard of honor parades in front of Russian President Vladimir Putin during his second inauguration ceremony. During his campaign and in addresses to the Federal Assembly, Putin called Russia a "great power." In 2005, Putin's government has launched a major publicity campaign to celebrate the Red Army's victory over Germany in the Second World War, reinforcing Russians' perceptions of their country as a historical force. (Sergei Chirikov/AFP/Getty Images)*

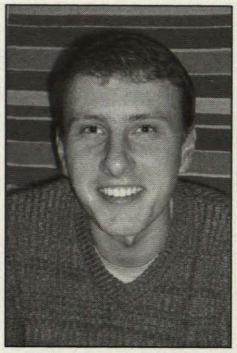
the United States economically and through force" is the primary long-term challenge to Russia. The operative term in this and similar documents is "multipolarity," meaning that international structures created during the Cold War, above all the UN Security Council, should be kept in place to prevent American domination. Russian opposition to the war in Iraq had much to do with Putin's fear that, in bypassing the UN, American President George W. Bush was setting a precedent for leaving Russia out of key decisions on shaping the new world order.

Unlike many European countries, Russia continues to view its security in traditional balance-of-power terms, and is very sensitive to what it perceives as attempts to interfere in its own sphere of influence. Putin's continued insistence on Russia expanding its influence abroad, even in the face of American protest, is in accordance with most Russians' perception of their country as a traditional Great Power. Moscow's decision to construct a nuclear reactor in the Iranian city of Bushehr and growing military cooperation with China are two examples of this quest for a larger global role. Recent Russo-American disputes along Russia's borders—in Ukraine and Georgia, as well as Chechnya—have been particularly fierce because Putin remains sensitive to changes that would further erode Russia's status in one of the few regions where she retains a decisive influence.

Ultimately, Putin aims to leave Russia capable of being mistress of her own affairs, and, if necessary, a strategic rival to the United States. There is little the United States can do to promote or retard Russia's efforts to regain power. Given the depth of Russia's social and economic decay, Putin has set himself an extremely ambitious task that will not be close to finished when his term is scheduled to end in 2008.

The United States' goal should be to prevent a currently weak Russia from rejecting the legitimacy of a world order in which the U.S. is the dominant power. Russia remains strong enough to create trouble around its borders, and aims to grow to its deserved great power status within the next decade. Russia will be less likely to disrupt the international order if it feels that its concerns are being taken seriously by the U.S. Therefore the U.S. must minimize the unilateralism that so enrages Moscow (and many other countries). The U.S. must also work harder to promote trust between Russians and Americans—especially through careful public diplomacy and expanded contacts among academics, the media, and politicians.

A newly powerful Russia, if it were to emerge as Putin hopes over the coming decades, will only be a threat to the United States if the Russian political elite perceives Russian and American interests as radically diverging. By emphasizing areas of common concern, avoiding patronizing rhetoric, and respecting legitimate Russian interests, the U.S. can help ensure that today's misplaced pessimism about U.S.-Russian relations does not become a self-fulfilling prophecy. P



RUSSIA'S MOST VALUABLE ASSET

Education and the New Generation

by Egor Fedotov

Since the breakup of the Soviet Union, most young Russians have continued to study in a Soviet-style education system. There has been some progress since the Soviet days, such as more international exchange and research opportunities for bright students. However, the education system sorely needs to be reformed to keep up with the modern age. A basic problem must be solved in order for Russia to move forward: a lack of innovation in higher education.

College education in Russia is a rigid system rooted in archaic, autocratic traditions. Students have virtually no say in university affairs: a student government is unheard of at my college of Far Eastern State Technical University. Russia's autocratic history explains the lack of student voice in education. For centuries, people were afraid to speak out, let alone try to change their schools. Nonetheless, an autocratic history is no excuse for the current rigid system. The Russian government does not fully understand the basic idea that involving people in their education from a young age is an investment for the future.

One of the grave shortcomings of a Russian education is that young people are not encouraged to think critically. A newly enrolled student is typically viewed as a blank tape about to be recorded, rather than as an inquisitive individual who wants to think for himself. Thinking critically involves a three-step process: first, asking good questions based on knowledge and experience; second, bringing together information from several sources to address the question; and finally, the forming and defending an independent conclusion. This seemingly no-brainer process is not grasped by many Russian students. One lector of the Robert Bosch Foundation was visibly shocked that a Russian student he interviewed had no opinion whatsoever about Mikhail Khodorkovsky's arrest. This is not to suggest that there are no students keen to engage in discussion around a variety of topics and issues; on the contrary, there are plenty of them. The problem is that open-ended debates do not constitute an integral part of school curriculum. Critical thinking will be an even more important skill for the new generation because an innovative thought process is a key to success in an increasingly global economy.

The rigidness of the system is further perpetuated at the university level because students are not free to choose their own courses. Most university students' schedules are dictated from above: they must follow a fixed set of classes for all ten semesters of undergraduate study. Some exceptions do exist, but usually the only freedom for college-bound high school graduates is their subject of specialization. A student decides on a subject when he is 17, but often ends up wanting to change as his interests develop. It is almost impossible to change specializations because there is no standard credit system to recognize credit in different university departments. The disenchantment this system causes in youth is frightening for the future of Russia. Currently, close to 70 percent of college graduates work in fields not related to their respective education. Coupled with a rampant brain drain, the picture of Russia's young upwardly mobile leaders getting ready to tackle its long-standing economic problems appears rather bleak.

Fortunately, there are some signs of change. Russia has signed on as member of the Bologna Process, a multinational program that aims to establish common recognition of university degrees across Europe. Since Russia joined the Bologna Process, several important steps have been initiated in Russia to live up to European standards of higher education. The most salient change has been the introduction of a more internationally-recognized degree system: many Russians now pursue a standard Bachelor's (4-year) and Master's (6-year) degree instead of the traditional Russian Specialist's Diploma (5 years). Though not yet uni-

Egor Fedotov *is studying international relations at Far Eastern State Technical University in Vladivostok, Russia.*

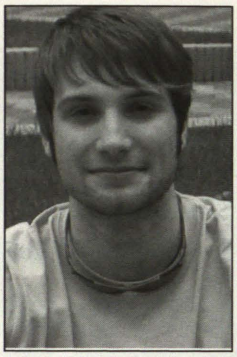
Ready for Duty: *The cadets from the Suvorov military school stand during the graduation ceremony at the Moscow's Military Cadet School. The school prepares teenagers for the professional military service. Education in Russia is notoriously rigid and institutionalized. (Denis Sinyakov/AFP/Getty Images)*

versal among Russian universities, this degree recognition system has already been applied in Russia in fields such as engineering and computer science. Equally important, first steps have been made for European higher education institutions to recognize Russian degrees. There is still a long way to a smooth process, however the very fact that change is in the works gives momentum to advocates of a state education system overhaul. Finally, there is a bold move to both integrate a more flexible European-style credit system and to introduce student government councils.

"The problem is that open-ended debates do not constitute an integral part of school curriculum."

Hopefully, these initiatives will happen in a smooth and speedy fashion. The success of change within the Russian education system will depend on both the willingness and eagerness of Russian education elite to join the process and the organization of a student grass roots movement. Change in the status quo of higher education would encourage Russia's young and ambitious people to invest in their homeland rather than continue to seek fortune in other countries. It would also promote human and intellectual capital as an indispensable component of the Russian economy. If it does not innovate, Russia stands doomed for a permanent backseat role on the world stage. An education system that fosters intellectual curiosity and individual development should be central to any program for a new and modern Russia. P

Old Traditions Continue: *A teacher works with her class at school #6 in Beslan, North Ossetia, as schools in the town reopen after the hostage crisis. Russian education at all levels emphasizes the teacher as the all-knowledgeable, rather than encouraging individual thought. (Maxim Marmur/AFP/Getty Images)*



CHINA IN MY RUSSIAN EYES

A Young Russian's Perspective

by Maximilian Peace

Thirty years ago, if you asked an average Chinese person the nations they considered friends of China, you would undoubtedly hear: "The U.S.S.R. and North Korea." Why? The answer: "We were building socialism together." However, if you ask a Chinese person the same question today, the answer would not be so firm. Perhaps it will include mentions of North Korea and probably the U.S. But what happened to Russia? A Chinese would likely say, "They used to help us but we are not as close any more. They are building up their own country in their own way." The attitude from our neighbor to the south has changed.

In the past, Russia served as a model of socialism for Mao. Russia provided Mao the tools he needed to build socialism: Russia helped spread communist ideas to the Chinese people; supplied major arms to China; and sent scientists to train their Chinese counterparts. According to my Chinese friend, it used to be an honor for Chinese students to study the Russian language. Chinese people adored Russian songs and sang them on special occasions. Chinese people knew people from U.S.S.R. as their close friends. Now, fewer Chinese students study Russian language; they are oriented toward English. Relations between the two countries started to decline with the end of Mao's era and the breakup of the U.S.S.R. China has lost its belief in Russia as a close friend and a communist partner as Russia transitioned to democracy.

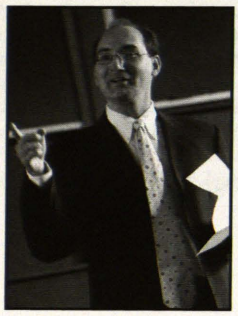
No right-minded Chinese politician thirty years ago would have claimed that the Primorksy region in far-east Russia rightly belongs to China. However, today it is common to hear Chinese claims to the region. China even has a Chinese name, *Haishaengwai*, for the region's capital city and my hometown, Vladivostok. At present, most Russians are not concerned with Chinese expansion. But perhaps the first stage of the expansion has been economic: the market of eastern Russia is completely overwhelmed with Chinese goods. For me, the situation means simply that China has made an economic move that Russia cannot match.

While I was traveling around China, I saw an industrial, economic and agricultural boom. I would never have believed that a communist country could make such a great transition from a third-world country to a growing superpower. When I returned to Russia, I realized that our whole country is far behind. We have an emergent business class that lives decently, but most people suffer from low wages, backwards social services, and corrupt authorities. It is a pity to admit that we are facing at least a fifteen year gap from China. Russia is desperately trying to catch up.

Russia and China were similar communist states thirty years ago, but chose different methods to integrate into the world economy. Russia tried to shift immediately from communism to Western-style democracy and capitalism. On the other hand, China is carrying out a step-by-step policy of gradual reform. Russians can own their own property, while China has retained state control of land. For Russia, the results of the quick transition to capitalism were bankruptcy, rising unemployment, and the collapse of major industry. By contrast, China has attracted investors from all over the world and has greatly improved its living conditions.

We are a rich country with a poor population. The government is carrying out a number of reforms, but most Russians' lives are not improving. There is a feeling in Russia that we are facing a collapse without war. Russia has a lot of space and it can't presently use. China already controls a significant part of Russia's market. Perhaps the next step will be to fill in our sphere of industry or even the territory with its own population. Until Russia figures out how to fill in the empty spaces by itself, it will continue to lie in the shadow of a growing red dragon.

Maximilian Peace *is studying Chinese language at the Vladivostok State University of Economics and Service. He spent the 2004-05 school year studying in Harbin, China.*



THE PERILS OF REVERSING ROE

Why Republicans Should Think Twice

by Wes Oliver

Almost immediately after President Bush announced that he had nominated John Roberts to fill Justice O'Connor's seat on the Supreme Court, speculation and concern abounded about Roberts' view of *Roe v. Wade*. This is in part understandable because it is one of the few issues addressed by the Court that the public can get its head around. A stained dress, not complex financial transactions, made good copy and, as a result, threatened to end the Clinton presidency. Unlike the furor over presidential philandering, however, the abortion issue is not a flippant diversion from more important issues. Fundamental values stand in conflict. Something that looks an awfully lot like life is in conflict with personal autonomy. The issue has symbolic significance for those, on each side of the issue, who will never be affected by the existence of a right to choose. The existence, or absence, of the right to choose says something about the status of women in society, just as it says something about society's respect for life itself.

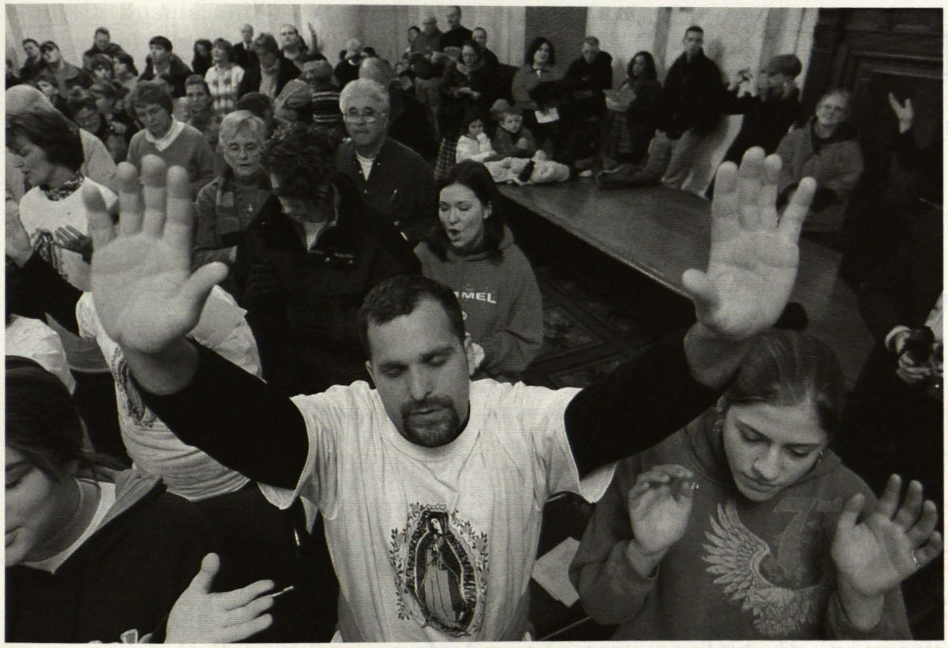
The discussion about the abortion issue — even the debate — is an important one for society to continue to have. However society resolves the tension between these fundamentally conflicting values, it seems important to be constantly reminded that an important value is sacrificed, which ought to make both sides of the debate more amenable to compromise than they presently are. Nevertheless the abortion debate has, at best, assumed far too much prominence in the confirmation process. Jeff Greenfield of CNN, commenting on the press coverage on the evening of the nomination, remarked insightfully that this is not the Abortion Court. There are a host of very important issues that the Supreme Court considers and abortion is only one of those issues, yet this is the sole issue that fixates the public when a vacancy occurs on the Court. Surely, even as important as the abortion issue is, the nominee's view on this issue can't be the only important litmus of his or her judgment.

Perhaps more importantly, though, the concern about a nominee's views on abortion is backwards. Democrats publicly attempt to ensure that any nominee to the Court will protect a woman's right to choose; conservative Republicans publicly attempt to ensure that a nominee will be hostile to *Roe v. Wade*. Facially, this makes sense; the Democratic platform protects a woman's right to choose while the Republican platform calls for a constitutional amendment to protect the lives of the unborn. It is backwards, however, because the best thing that could happen to the Democratic Party — and the worst thing that could happen to the Republican Party — would be the successful reversal of Roe.

If the Supreme Court were to reverse the decision, abortion would not become illegal. State legislatures would be left with the power to set limits on abortion. Congress could even attempt to set limits through its broad powers to regulate interstate commerce. But one thing is certain: Congress and state legislatures would have to consider an issue that the Supreme Court has, for the past 30 years, taken from them. The Republican promise to protect the unborn would become more than an inconceivable platitude. Those who favor choice but otherwise generally agree with the Republican platform may, as long as Roe remains the law, comfortably vote Republican. If Roe is reversed, abortion becomes an important contest in political contests; polls reveal that the issue played a minor role in voters' minds in 2004. This could easily change if Courts returned the power to politicians to resolve the abortion issue.

It seems likely that a non-trivial number of women — with whom the Republican Party has recently made substantial inroads — would rethink their affiliation if their votes had an immediate impact on the issue. Two Republican women, who have obvious incentives to remain quiet about their pro-choice views, Laura and Barbara Bush, have publicly noted their disagree-

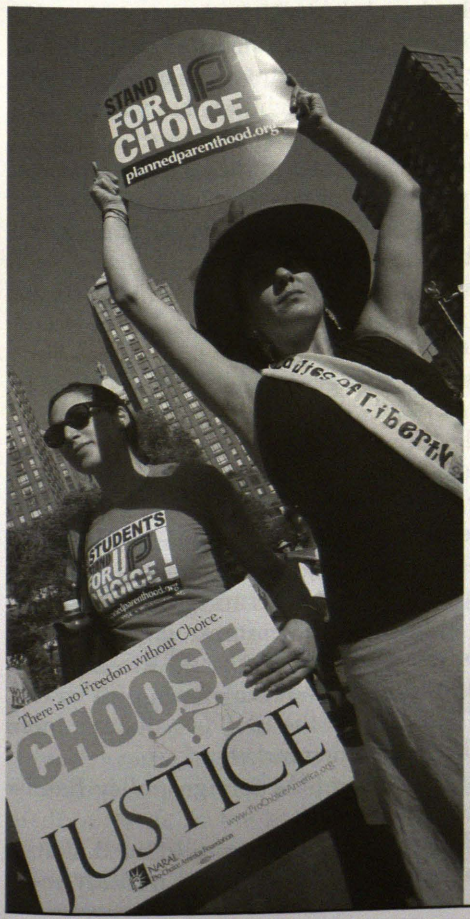
***Wes Oliver** is a Climenko Fellow and Lecturer on Law at Harvard Law School.*



***Finding the Light**: Activists raise their hands during a prayer service before the kick-off of the March for Life rally on January 24, 2005 in Washington, D.C., in which thousands of people would congregate in front of the U.S. Supreme Court. (Mark Wilson/Getty Images)*

ment with their husbands on this issue. The political costs to the Republican Party could be enormous.

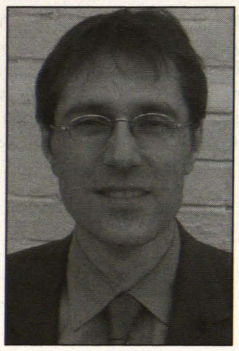
Practically, reversing *Roe* could well have a negligible impact on a woman's right to choose. The world has changed considerably since 1973 when the Court handed down the decision. A solid majority of Americans favor the basic principles announced in *Roe*, even though some polls show that a majority of Americans find abortion morally unacceptable. States that would ban abortion, if permitted to do so by the Court, would almost certainly be part of a small minority, if any chose to do so at all. It seems unlikely that George Bush, or Karl Rove, would be willing to risk the future of the Republican Party on the possibility that Louisiana and Georgia would ban abortions.



Perhaps the focus on the nominee's view on abortion is sensible after all. A lot about the future of the country could turn on how the next justice votes on the abortion issue. But the justice's vote on this issue will have less impact on a woman's right to choose than it will have on who will decide the remainder of the issues the country faces.

***A New Face**: Supreme Court Chief Justice Nominee John Roberts answers questions during his second day of confirmation hearings on September 13, 2005 in Washington, D.C. Roberts was questioned repeatedly about his beliefs on the landmark Roe v. Wade case. (Chip Somodevilla/Getty Images)*

***A Voice for Choice**: Pro-choice women protest President Bush's choice of John Roberts on July 20, 2005 in New York. Pro-choice activists are troubled that Roberts went on the record calling for Roe v. Wade to be overturned when he served as a lawyer for the government. (Mario Tama/Getty Images)*



THE EUROPEAN UNION'S FOREIGN POLICY

Where Does It Go?

by Sascha Müller-Kraenner

After the referenda on the EU Constitutional Treaty in France and the Netherlands, and the failed financial negotiations under the Luxembourg Presidency, the European Union finds itself in a crisis. The phase of reflection which is now beginning might endanger the current dynamic of enlargement and deepening of the Union, if it takes too long. The failed Constitutional referenda in France and the Netherlands reflect a deep-seated criticism against a perceived democracy and fairness deficit, both in those countries and in the larger Union. Key projects of Europe's integration, including Eastern enlargement as well as Turkey's accession, were pushed forward by political elites and have not yet reached the hearts and minds of European citizens.

Foreign policy is at the center of the Constitutional Treaty. It mandates a common foreign and security policy that covers all areas of foreign policy and foresees a progressive development of a common defense policy. A number of institutional innovations, most prominently a European Foreign Minister, are being introduced. The European Security Strategy (ESS), conceived in 2003, identifies the Union's role in the world and its geo-strategic interests. The European Neighbourhood Policy (ENP) proposes a system of graduated cooperation and association agreements with all neighbouring countries. The ESS and the ENP try to promote the Constitution's objective to create a common space of security, stability and sustainable economic development in the "Wider Europe," as well as to establish a "ring of friends" around the EU's borders.

Even if the ratification of the Constitution fails, some of these institutions could be safeguarded in separate agreements. However, the political mechanics that have driven the Union's integration and governed its foreign policy decision making are out of balance. The Franco-German motor could drive a Union of twelve Member States. However, this motor is not strong enough for a Union of 25 Members. Germany and France face both economic as well as political crises. They need domestic reform and help from the outside. Under Tony Blair, Britain has not clarified how it stands to the European project and – most notably – even failed to introduce the Euro. Poland, however, has taken a leadership role for the EU in the Democratic transformation of Ukraine. A key challenge will therefore be to give Poland a role in the Union's strategic core.

With the European Neighbourhood Policy (ENP) the EU is redefining its geopolitical interests as well as the relationship toward its new neighbors, both South and East. The entry of eight Central and Eastern European countries together with Cyprus and Malta into the European Union signifies major changes in relation to the EU external borders and to EU external relations. The European Neighborhood Policy will restructure and refocus EU relations with the neighboring countries to the East (Armenia, Azerbaijan, Belarus, Georgia, Moldova and Ukraine) and to the South, the Euro-Mediterranean Partnership countries (Algeria, Egypt, Israel, Jordan, Lebanon, Morocco, Palestine, Syria and Tunisia) as well as Libya. The European Neighbourhood Policy seeks to create a system of graduated cooperation and association contracts. However, intrinsic within the already existing framework there are some contradictions: Should European and non-European neighbors be treated equally? Can the EU cooperate on equal terms with democratic as well as with authoritarian regimes? Is Russia just another neighbor among many or should it receive an exceptional position within the framework of a strategic partnership? The crux of the ENP is economic integration within the EU-single market.

In the coming years, the EU's foreign policy has to prove itself in four areas:

Bringing the Balkans closer to Europe. In the Balkans, the EU carries out significant police and military mis-

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sions in Bosnia and in Kosovo. The Balkan Stability Pact promises an integration perspective to the whole region. However, political stability and economic development proceed at a snail's pace. In 2006, the EU has to decide how to proceed with Croatia's Membership application. Bosnia's dysfunctional constitution has to be renegotiated, and Kosovo's open status has to be resolved.

Building partnership around the Mediterranean. The Middle East is the region where EU and U.S. strategic political and economic interests meet. Within the Barcelona Accords, the states of the Middle East and Northern Africa are already working together with the EU. The original agreements, based mainly on economic cooperation, were expanded upon in the last years in order to allow for more collaboration with regards to security, border control and migration. The Barcelona Process is Europe's main contribution offered to the G8 initiative for the transformation of the "Greater Middle East" toward democracy, development and common security.

Starting Membership negotiations with Turkey. On December 17, 2004, the EU took the strategic decision to accept Turkey as a candidate for membership. Whether and when Turkish membership will become a reality, this decision has changed EU–Turkish relations and the context of European foreign policy forever. The Draft EU Constitution acknowledges and honors Member States obligations to NATO. However, the accession process will lead to an even stronger coordination of Turkey's security policy with ESDP. The EU should also start to include Turkey – as well as other European NATO partners – into the further elaboration of the European Security Strategy. Turkey could join future ESDP operations even before accession to the Union and provide the backbone to certain activities outside the traditional geographic range of EU foreign policy.

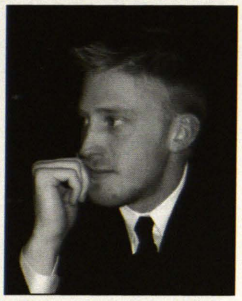
Building a strategic partnership with Russia. After the Orange Revolution in Ukraine, Russia has lost its hegemonic influence over most of Eastern Europe. Ukraine, supported by Poland, wants to become an EU Member over the medium term. In the end, Belarus and Moldavia will move towards democracy, too. However, the EU's ambition to create stability and prosperity in its Eastern neighborhood can be fulfilled only if Russia supports rather than undermines this policy. Strong security interests, as well as economic ties and Eurasia's energy infrastructure, bind both partners together. The EU therefore should develop a privileged partnership with Russia without sacrificing its human rights standards and the EU perspective of its other Eastern neighbors.

In principle, the Bush doctrine could unite liberals and conservatives, Democrats and Republicans. All Americans can agree with its goal of promoting democracy. But perhaps Democrats remain leery of the president's ideas because their implementation has been so consistently flawed. Our attention has shifted dramatically away from Afghanistan, where the war on terror began. Today, opium and warlords control the destiny of this nascent democracy. While we chased shadows of threats in Iraq, we neglected, and even incited, the nations of North Korea and Iran to develop nuclear weapons. And the administration continues to underestimate the importance of multilateralism. In March, Italy became the latest nation to announce troop withdrawals from Iraq. Bulgaria and Ukraine, facing domestic pressure themselves, are also pulling out. The nominations of vigorous United Nations critic John Bolton as our next UN ambassador and prominent neo-conservative Paul Wolfowitz as World Bank president were thoughtlessly abrasive and misguided.

If we are serious about ending tyranny in the world, we cannot simultaneously ignore other forms of oppression. The tyrannies of hunger, sickness, and civil war dictate the lives of millions. What do our ideals dictate we do in Sudan? Nor can we focus so exclusively on the Middle East at the expense of pressing challenges to freedom elsewhere. To do so would risk plunging other regions into equivalent chaos and instability.

Americans have the right ideals: democracy and justice, freedom from fear and tyranny. Since September 11, 2001, however, we have half-heartedly, and sometimes half-wittedly, put these principles into practice. Hopefully now we can promote the ends of democracy and freedom through means worthy of the United States.

"Is Russia just another neighbor among many or should it receive an exceptional position within the framework of a strategic partnership?"



THE GLOBAL FUND AND PERFORMANCE-BASED FUNDING

A Fight for World Health

by Chris Connelly

On August 10, the three NGO board members of the Global Fund to Fight AIDS, Tuberculosis and Malaria, backed by a coalition of North American, European, and Japanese NGOs, launched a Call for Action to raise awareness of potential funding deficits for 2006 and 2007. In their Call for Action, the board members expressed concern that donor nations would fall far short of the $7 billion which is currently the Global Fund's projected need for the two year period. As part of the Call for Action, the group also petitioned other NGOs and global development leaders to sign an International Appeal which urged donor governments to donate their appropriate share at the upcoming Global Fund Replenishment Conference, which was held on September 5-6 in London. To date, over 300 organizations around the world have signed the International Appeal.

As predicted, only $3.7 billion was pledged at the Replenishment Conference, a figure far short of the projected need. Although the full value needed by the Fund was not pledged, Fund leaders remain optimistic. "This is the first time the Global Fund has attempted a formal replenishment process," said Dr. Richard Feachem, the Executive Director of the Global Fund. "It has been a success and makes us hopeful we will reach our total needs by 2007." Though most Fund leaders view the Replenishment Conference as a success, the lack of complete funding begs the question: Why is the Global Fund under-funded?

In January 2002, a permanent Fund Secretariat was established in Geneva. The Fund was to act as what UN Secretary General Kofi Annan called a "war chest" to fight the three most deadly infectious agents linked to poverty; HIV/AIDS, tuberculosis, and malaria. Essentially, the Fund was meant to act as a *performance based* funding mechanism to aid programs within developing countries which are targeted at the prevention, control, and/or treatment of these diseases. That is, the Fund was to award grants to countries who demonstrate good programs to this end, but who lacked the funding to fully implement and develop these programs. As time progressed, the Fund was to monitor and evaluate each grant based on its performance against hard and soft indicators, and only continue monetary disbursements if the grant was performing well. Ideally, the Fund was meant to promote national ownership of public health efforts within countries receiving Global Fund aid by garnering the necessary financial support, while allowing the grant receiving country to implement its own programs.

As of August 1, the Global Fund has signed 316 grant agreements in 127 countries, accounting for more than $3 billion since its January 2002 inception. Initially, this value may seem very impressive. $3 billion has the potential to accelerate the fight against three of the deadliest diseases plaguing the globe, though certainly far more is needed. But the mission of the Fund is not to simply throw money at the problem. The mission of the Fund is to provide the financial resources to adequately or well performing grants.

Unfortunately, the Global Fund has reneged on its central dogma: performance based funding. Upon a close examination, many of the grants currently receiving disbursements from the Fund are in fact underperforming.

Aidspan, an independent watchdog group of the Global Fund, developed a grant early warning system earlier this year. By their calculations, 84 percent of all grants are currently behind schedule, and on average, each grant is currently 3.9 months behind schedule. Simply put, many grants are not doing well, failing to meet the performance standards outlined in the grant agreements.

As a performance based funding mechanism, the Global Fund must honestly evaluate the performance of its grants and act accordingly. Something needs to be done to insure that the limited resources of the Fund are put to the greatest possible use. Each day, millions of people are affected as a result of these diseases; economies stagnate; and lives are destroyed. One of the central slogans

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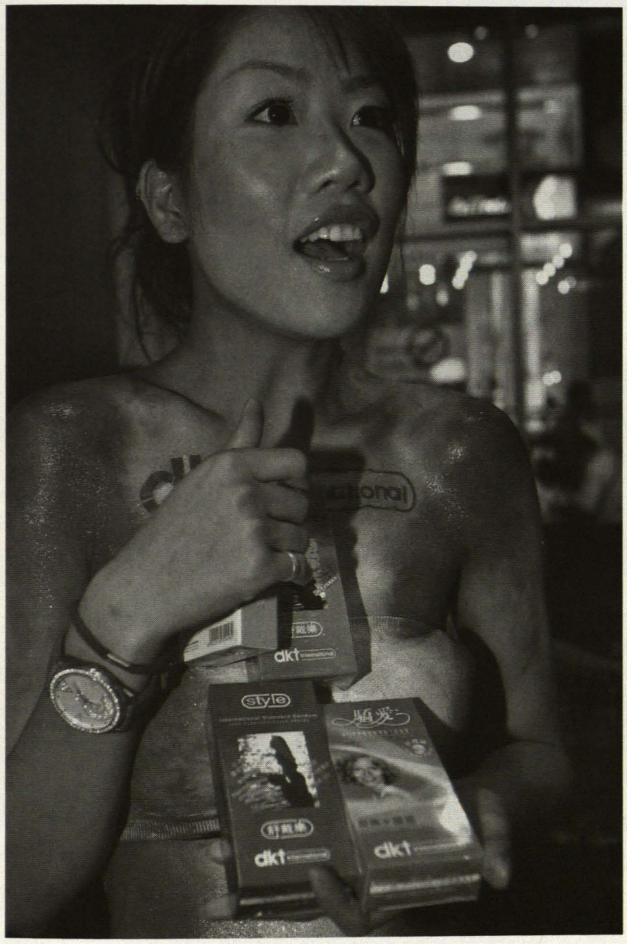

***Educating the Masses**: One of the keys to lowering the global AIDS rate has been a growing awareness of correct prophylactic use. (Getty Images)*

spending, but doing little in the way of proving. Rather than calling only for an International Appeal for "fair share" funding from donor nations, the international community must also call for an International Appeal for provable results. We must demand a level of accountability for moneys spent so that they are put to their maximal possible use.

The $3 billion pledged at the Replenishment Conference is a good start towards future efforts to prevent, control, and treat these diseases, but it will hardly make an overall dent in the global need. As such, every dollar of this value must be rigorously accounted for so that none is wasted. At its foundations, the Global Fund is an ideal mechanism to accomplish this task. But the Fund must live up to its guiding principles of accountability and transparency to do so adequately. P

of the Global Fund is *Raise it, Spend it, Prove it*. So far, the fund is raising and

"Rather than calling only for an International Appeal for 'fair share' funding from donor nations, the international community must also call for an International Appeal for provable results."

***Mining for Awareness**: One of the Global Funds aims is lower AIDS infection rates worldwide. Here, women from the mining community pass out condoms and educational leaflets in the Gauteng Province of South Africa. The women come out every Friday to promote safe sex. (Getty Images)*

ALL QUIET ON THE EASTERN FRONT?

The Future of U.S. Policy Toward Russia

During the lifespan of the typical Yale undergraduate, the entity known today as Russia has undergone a transformation from "The Evil Empire" to a "Strategic Partner." The days of mutually assured destruction have given way to the days of mutually assured admiration. Despite low-key rumblings between President Bush and his good-naturedly nicknamed associate "Pootie-Poot" regarding Russia's crack-down on domestic political dissent and America's military operations in Iraq, relations between the two states are likely to remain positive due to a common ground in the War on Terror.

For the United States, this attitude toward its former foe is based strictly on short-term needs. The Russian Federation is a vital ally against international terrorism; their battle with Chechnyan extremists – most visibly in the 2002 Moscow theater siege – make them one of the only militarily-capable partners in this fight. Furthermore, Russia's position as one of the five permanent members on the United Nations Security Council has made their vote pivotal in any American military action overseas. Such latent power has forced Bush to conveniently ignore Putin's almost autocratic rule of a country nominally labeled as a "democracy."

In the long-term, a foreign policy of appeasing an enemy of democracy for the sake of short-term military objectives is bound to fail. We need to finish the transformation that began with the fall of the Berlin Wall, not to abort it mid-stride for political expediency. Russia will be a better partner when it inwardly promotes the political, economic, and social liberties that our joint foreign policy outwardly projects. Accomplishing this task will be difficult, but such reforms are a necessary step in creating a more stable, durable, and friendly Russian Federation.

The most apparent problems in Russia are political. Putin's Kremlin, sitting atop record revenues from state-controlled oil, has been able to spend freely to dominate all-but-rigged elections. Candidates friendly to Moscow are propped up with Putin's war-chest. At face-value, the Russian Duma (national legislature) is multi-party, but most of the dominant parties are in fact Kremlin-originated or Kremlin-funded organizations. Alternate sources of funding – and thus political opposition – are quickly destroyed by the government. Anyone familiar with the recent arrest of Mikhail Khodorkovsky and the nationalization of his successful oil firm Yukos can attest to the savage reprisals launched by the Kremlin. Once Russia's wealthiest citizen and a prominent critic of Putin, he now finds himself held in a Russian prison. In such a situation, Putin is able to constrain his enemies in much the same way as Soviet leaders of old, and Russian political freedom is crushed.

Judicial and legal statutes are in a similar position. While the rule of law exists, codes are either not enforced by authorities or ignored by the citizenry. Russia's corrupt government – at all levels – is well-known and need not be explored further here. More importantly, the Russian population has shown an affinity for skirting the law, both out of necessity and out of cultural practice dating back to the Soviet era. Meanwhile, courts are underfunded and judges remain poorly trained and even more poorly paid.

Economic backwardness is facilitated by this legal chaos. Foreign direct investment is stunted by lack of outsider faith in Russian legal conceptions of private property and in the common Russian business practice of false accounting. Even more discouraging, Russians are forced to avoid paying multi-layered taxes because combined, they would amount to over 100 percent of their income in some cases. Putin's inability to create a taxable population base has resulted in the Kremlin's reliance on oil revenues, which itself fuels many of the political abuses discussed above.

While this laundry list of reform issues is merely the tip of a Siberian-sized iceberg, it is an important starting point to understand the barriers to Russian re-emergence and greatness. It is in America's interest not only to maintain the Russian Federation as an ally, but to finally end the Cold War by freeing the Russian people. Without quick reform, the greatest American ideological victory in its short history – the dream of a democratic, capitalist Russia – may soon go the way of Czar Nicholas II and General Secretary Gorbachev. Bush can turn a blind eye to Russia's problems today, but he will be facilitating the creation of another unstable power on the Eastern Front.

Jason Davis, Editor-in-Chief

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